



Republic of the Philippines
PROVINCE OF ZAMBOANGA SIBUGAY
Municipality of Ipil

OFFICE OF THE SANGGUNIANG BAYAN

Presiding Officer / Overall Chairman

☐ **HON. RAMSES TROY DY OLEGARIO**

Municipal Vice Mayor
Contact No. 0917-586-9242
Chairman: Steering Committee

SANGGUNIANG BAYAN MEMBERS:

☐ **HON. SHARIF MAZIN ALIH HASIM**

Contact No. 0917-127-4289
Chairman: Committee on Tourism & Public Information
Committee on Education, Culture and Development

☒ **HON. GLENN IAN YAMARO SABIJON**

Contact No. 0969-466-8798
Chairman: Committee on Trade & Industry
Committee on Public Utilities, Transportation

☒ **HON. FARIDA ANDUHOL DANGPALAN**

Contact No. 0906-442-5653
Chairman: Committee on Infrastructure, Public Works,
Project Monitoring and Evaluation
Committee on Women, Children & Family and
Social Services
Committee on Human Resource & Capability Building

☒ **HON. CATHERINE MORALES TORRALBA**

Contact No. 0935-824-0366
Chairman: Committee on Rules & Ordinances
Comm. on Market, Slaughterhouse & Eco. Enterprise

☒ **HON. SERAFIN LAMBAYAN RAMOS**

Contact No. 0955-105-0747
Chairman: Committee on Ways and Means
Committee on Agriculture, Agrarian Reform
Committee on Senior Citizens and PWD
Committee on Cooperative and Livelihood

☒ **HON. DIANNE LARROSA CATALUÑA**

Chairman: Committee on Good Government, Public
Ethics & Accountability, Human Rights, Labor & Justice
Committee on Health and Sanitation
Committee on Environment

☒ **HON. WENIFREDO MALAWIT CHIONG**

Contact No. 0917-710-7249
Chairman: Committee on Public Safety, Security,
Order / LDRRM

☒ **HON. JUAN PABLO ANDAN NUEGA**

Contact No. 0906-925-9540
Chairman: Committee on Science, Information,
Communication & Technology

☐ **HON. IDA MEL OLEGARIO CAPERIG, CPA,CSP**

Contact No. 0905-345-1887/0920-505-4465
Chairman: Committee on Appropriation & Finance
Committee on Housing & Land Utilization
Committee on Barangay Affairs

☒ **HON. SUSIE JANE CALUMBA GARCIA**

Contact No. 0917-134-0450
Chairman: Committee on Youth & Sports Development

Legend: ☒PRESENT ☐ON LEAVE
☐ON OB ☒ABSENT

EXCERPTS FROM THE MINUTES TAKEN DURING
THE 58TH REGULAR SESSION OF THE
SANGGUNIANG BAYAN OF IPIL, ZAMBOANGA
SIBUGAY HELD AT ITS SESSION HALL ON AUGUST
23, 2023 AT 10:00 A.M.

ORDINANCE NO. 08-656-2023

**AN ORDINANCE APPROVING THE REVISED MUNICIPAL
REVENUE CODE OF THE MUNICIPALITY OF IPIL,
PROVINCE OF ZAMBOANGA SIBUGAY.**

SPONSORED BY: HON. SERAFIN L. RAMOS
CO-SPONSORED BY: HON. IDA MEL O. CAPERIG
HON. CATHERINE M. TORRALBA
HON. FARIDA A. DANGPALAN
HON. JUAN PABLO A. NUEGA

Be it ordained by the *Sangguniang Bayan* of the
Municipality of Ipil, Province of Zamboanga Sibugay, that

CHAPTER 1
General Provisions

ARTICLE A
Short Title and Scope

SECTION 1A.01. Short Title. This ordinance shall be known
as the Revised Municipal Revenue Code of the Municipality
of Ipil, Province of Zamboanga Sibugay.

SECTION 1A.02. Scope and Application. This Code
shall govern the levy, assessment, and collection of taxes,
fees, charges and other impositions within the territorial
jurisdiction of this municipality.

ARTICLE B
Construction of Provisions

**SECTION 1B.01. Words and Phrases Not Herein
expressly Defined.** Words and phrases embodied in this
code not herein specifically defined shall have the same
definitions as found in RA 7160, otherwise known as the
Local Government Code of 1991.

SECTION 1B.02. Rules of Construction. In construing the
provisions of this Code, the following rules of construction
shall be observed unless inconsistent with the manifest intent
of the provisions.

- (a) **General Rules.** All words and phrases shall be construed and understood according to the common and approved usage of the language; but the technical words and phrases and such other words in this Code which may have acquired a peculiar or appropriate meaning shall be construed and understood according to such technical, peculiar or appropriate meaning.
- (b) **Gender and Number.** Every word in the Code importing the masculine gender shall extend to both male and female. Every word importing the singular number shall apply to several persons or things as well; and every word importing the plural number shall extend and be applied to one person or thing as well.
- (c) **Reasonable Time.** In all cases where any act is required to be done within the reasonable time, the same shall be deemed to mean such time as may be necessary for the prompt performance of the act.
- (d) **Computation of Time.** The time within which an act is to be done as provided in this Code, or in any rule or regulation issued pursuant to the provisions thereof, when expressed in days, shall be computed by excluding the first day and including the last day, except if the last day falls on a Sunday or holiday, in which case the same shall be excluded in the computation and the business day following shall be considered the last day.
- (e) **References.** All references to chapters, articles, or sections are to the Chapters, Articles or Sections in this code unless otherwise specified.
- (f) **Conflicting Provisions of Chapters.** If the provisions of different chapters conflict with or contravene each other, the provisions of each chapter shall prevail as to all specific matters and questions involved therein.
- (g) **Conflicting Provisions of Sections.** If the provisions of the different sections in the same article conflict with each other, the provisions of the Section which is the last in point of sequence shall prevail.

SECTION 2A.02. Imposition of Tax. There is hereby imposed on the following persons who establish, operate, conduct or maintain their respective business within the municipality a graduated business tax in the amount hereafter prescribed:

(a.) **On manufacturers, producers, assemblers, repackers, processors, brewers, distillers, rectifiers, and compounders of liquors, distilled spirits, and wines or manufacturers of any article of commerce of whatever kind or nature. In accordance with the following schedule:**

WITH GROSS SALES OR RECEIPT FOR THE PRECEDING CALENDAR YEAR IN THE AMOUNT OF:	ANNUAL TAX PER ANNUM
Less than Php10,000.00	207.73
10,000.00 or more but less than 15,000.00	276.96
15,000.00 or more but less than 20,000.00	380.20
20,000.00 or more but less than 30,000.00	553.94
30,000.00 or more but less than 40,000.00	830.91
40,000.00 or more but less than 50,000.00	1,038.64
50,000.00 or more but less than 75,000.00	1,661.81
75,000.00 or more but less than 100,000.00	2,077.27
100,000.00 or more but less than 150,000.00	2,769.69
150,000.00 or more but less than 200,000.00	3,462.11
200,000.00 or more but less than 300,000.00	4,846.96
300,000.00 or more but less than 500,000.00	6,924.23

500,000.00 or more but less than 750,000.00	10,071.60
750,000.00 or more but less than 1,000,000.00	12,589.50
1,000,000.00 or more but less than 2,000,000.00	17,310.56
2,000,000.00 or more but less than 3,000,000.00	20,772.68
3,000,000.00 or more but less than 4,000,000.00	24,927.21
4,000,000.00 or more but less than 5,000,000.00	29,081.74
5,000,000.00 or more but less than 6,500,000.00	30,686.91
6,500,000.00 or more	at rate not exceeding forty-seven and twenty- one percent (47.21%) of one percent (1%)

The preceding rates shall apply only to the amount of domestic sales of manufacturers, assemblers, repackers, processors, brewers, distillers, rectifiers, and compounders of liquors, distilled spirits, and wines or manufacturers of any article of commerce of whatever kind or nature other than those enumerated under paragraph (c) of this section.

(b.) On wholesalers, distributors, or dealers in any article of commerce of whatever kind or nature in accordance with the following schedules:

WITH GROSS SALES OR RECEIPT FOR THE PRECEDING CALENDAR YEAR IN THE AMOUNT OF:	ANNUAL TAX PER ANNUM
Less than Php1,000.00	22.66
1,000.00 or more but less than 2,000.00	41.55
2,000.00 or more but less than 3,000.00	62.95
3,000.00 or more but less than 4,000.00	90.64
4,000.00 or more but less than 5,000.00	125.90
5,000.00 or more but less than 6,000.00	152.34
6,000.00 or more but less than 7,500.00	180.04
7,000.00 or more but less than 8,000.00	232.91
8,000.00 or more but less than 10,000.00	235.43
10,000.00 or more but less than 15,000.00	276.97
15,000.00 or more but less than 20,000.00	346.22
20,000.00 or more but less than 30,000.00	415.45
30,000.00 or more but less than 40,000.00	553.94
40,000.00 or more but less than 50,000.00	830.91
50,000.00 or more but less than 75,000.00	1,246.36
75,000.00 or more but less than 100,000.00	1,661.81
100,000.00 or more but less than 150,000.00	2,354.24
150,000.00 or more but less than 200,000.00	3,046.66
200,000.00 or more but less than 300,000.00	4,154.54
300,000.00 or more but less than 500,000.00	5,539.38
500,000.00 or more but less than 750,000.00	8,309.07
750,000.00 or more but less than 1,000,000.00	11,078.76
1,000,000.00 or more but less than 2,000,000.00	12,589.50
2,000,000.00 or more	at rate not exceeding sixty- two and ninety- five percent (62.95%) of one percent (1%)

The Businesses enumerated in paragraph (a) above shall no longer be subject to the tax on wholesalers, distributors, or dealers herein provided for.

(c) On Exporters, and on manufacturers, millers, producers, wholesalers, distributors, dealers or retailers of essential commodities enumerated hereunder at a rate not exceeding one-half (1/2) of the rates prescribed under subsections (a), (b), and (d) of this article;

- (1.) Rice and Corn;
- (2.) Wheat or cassava flour, meat dairy products, locally manufactured, processed or preserved food, sugar, salt and agricultural marine, and fresh water products, whether in their original state or not;
- (3.) Cooking oil and cooking gas;
- (4.) Laundry soap, detergents, and medicine;
- (5.) Agricultural implements, equipment and post-harvest facilities, fertilizers, pesticides, insecticides, herbicides and other farm inputs;
- (6.) Poultry feeds and other animal feeds;
- (7.) School Supplies and;
- (8.) Cement

For purposes of this provision, the term exporters shall refer to those who are principally engaged in the business of exporting goods and merchandise, as well as manufacturers and producers whose goods or products are both sold domestically and abroad. The amount of export sales shall be excluded from the total sales and shall be subject to the rates not exceeding one half (1/2) of the rates prescribed under paragraph (a), (b), and (d) of this article.

(d) On Retailers.

Gross Sales/Receipts for the Preceding year	Rate of Tax per annum
400,000 or less	2.52%
More than 400,000.00	1.26%

The rate of two and fifty two percent (2.52%) per annum shall be imposed on sales not exceeding Four Hundred Thousand Pesos (P400,000.00) while the rate of one and twenty six percent (1.26 %) per annum shall be imposed on sales in excess of the first Four Hundred Thousand Pesos (P400,000.00).

However, Barangays shall have the exclusive power to levy taxes on stores whose gross sales or receipts of the preceding calendar year does not exceed Thirty Thousand Pesos (P30,000.00) subject to existing laws and regulations.

(e) On contractors and other independent contractors in accordance with the following schedule:

WITH GROSS SALES OR RECEIPT FOR THE PRECEDING CALENDAR YEAR IN THE AMOUNT OF:	ANNUAL TAX PER ANNUM
Less than Php5,000.00	34.34
5,000.00 or more but less than 10,000.00	77.26
10,000.00 or more but less than 15,000.00	131.62
15,000.00 or more but less than 20,000.00	207.73
20,000.00 or more but less than 30,000.00	346.21
30,000.00 or more but less than 40,000.00	484.70
40,000.00 or more but less than 50,000.00	692.42
50,000.00 or more but less than 75,000.00	1,107.88
75,000.00 or more but less than 100,000.00	1,661.81
100,000.00 or more but less than 150,000.00	2,492.72
150,000.00 or more but less than 200,000.00	3,323.63

200,000.00 or more but less than 250,000.00	4,569.99
250,000.00 or more but less than 300,000.00	5,816.35
300,000.00 or more but less than 500,000.00	7,755.13
400,000.00 or more but less than 500,000.00	10,386.34
500,000.00 or more but less than 750,000.00	11,645.29
750,000.00 or more but less than 1,000,000.00	12,904.24
1,000,000.00 or more but less than 2,000,000.00	14,477.93
2,000,000.00 or more	at rate not exceeding sixty-two and ninety- five percent (62.95%) of one percent (1%)

Provided, that in no case shall the tax on gross sales of P2,000,000.00 or more be less than P14,477.93.

For the purposes of this section, the tax of general engineering, general building and specialty contractors shall initially be based on the total contract price, payable in equal annual installments within the project term.

Upon completion of the project, the taxes shall be recomputed on the basis of the gross receipts for the proceeding calendar years and the deficiency tax, if there be any, shall be collected provided in this code or the excess tax payment shall be refunded.

(f) On banks and other financial institutions, at the rate of fifty-seven and twenty-three percent of one percent (57.23% of 1%) of the gross receipts of the preceding calendar year derived from:

Banks and Banking Institutions whether these transactions are recorded in the regional and principal office:

1. Interest from loans and discounts-this represents interest earned and actually collected on loans and discounts. The following is the breakdown:

- a.) Discounts earned and actually collected in advance bills discounted.
- b.) Interest earned and actually collected on demand loan
- c.) Interest earned and actually collected on time loans, including the earned portions of interest collected in advance
- d.) Interest earned and actually collected in mortgage contracts receivables

2. Interest earned and actually collected on interbank loans

3. Rental of property-this represents the following rental income:

- a.) Earned portion of rental collected in advance from lessees of safety deposit boxes
- b.) Rental earned and actually collected from lessees on bank premises and equipment

4. Income earned and actually collected from acquired assets

5. Income from sales or exchange of assets and property

6. Cash dividends earned and received on equity investments

7. Bank Commissions from lending activities

8. Income component of rentals from financial leasing

9. Interest Income from unpaid amount due from delinquent cardholders and "Financial Charges"

10. Merchant's Discount

11. Income from Automated Teller Machine (ATM)

12. General consultancy services

13. All other similar activities consisting essentially of the sales of services for a fee

At the time of the annual payment of the tax due, the Head Office or branch of a bank shall submit to the Municipal Treasurer a notarized **Joint Statement of Annual Income (Schedule of Annual Income)** for the preceding calendar year which shall be signed by a designated Officer of the Head Office and by the Branch Manager.

Other Financial Institutions whether these transactions are recorded in the regional and principal office:

1. Gross receipts derived from interest, commissions and discounts from lending activities.
2. Income from financial leasing, dividends and rentals on property
3. Profit from exchange or sale of property, insurance premium

(g) On the businesses hereunder enumerated:

14. Cafes, cafeterias, ice cream and other refreshment parlors, restaurants, soda fountain bars, carinderias or food caterers;
15. Amusement places, including places wherein customers thereof actively participate without making bets or wagers, including but not limited to night clubs, or day clubs, cocktail lounges, cabarets or dance halls, karaoke bars, skating rinks, bath houses, swimming pools, exclusive clubs such as country and sports clubs, resorts and other similar places, billiard and pool tables, bowling alleys, circuses, carnivals, merry go-rounds, roller coasters, ferries wheels, swings, shooting galleries, and other similar contrivances, theaters and cinema houses, boxing stadia, race tracks, cockpits and other similar establishments.
16. Commission agents
17. Lessors, dealers, brokers of real estate;
18. On travel agencies and travel agents
19. On boarding houses, pension houses, motels, apartments, apartelles, and condominiums
20. Subdivision owners/ Private cemeteries and Memorial Parks
21. Privately-owned markets;
22. Hospitals, medical clinics, dental clinics, therapeutic clinics, medical laboratories, dental, laboratories;
23. Operators of Cable Network System
24. Operators of computer services establishment

Provided that in no case shall the tax on gross sales of P2,000,000.00 or more be less than P14,477.93.

**WITH GROSS SALES OR RECEIPT FOR THE PRECEDING CALENDAR
YEAR IN THE AMOUNT OF:**

ANNUAL TAX PER ANNUM

Less than Php5,000.00	34.34
5,000.00 or more but less than 10,000.00	77.26
10,000.00 or more but less than 15,000.00	131.62
15,000.00 or more but less than 20,000.00	207.73
20,000.00 or more but less than 30,000.00	346.22
30,000.00 or more but less than 40,000.00	484.70
40,000.00 or more but less than 50,000.00	692.42
50,000.00 or more but less than 75,000.00	1,107.88
75,000.00 or more but less than 100,000.00	1,661.81
100,000.00 or more but less than 150,000.00	2,492.72
150,000.00 or more but less than 200,000.00	3,323.63
200,000.00 or more but less than 250,000.00	4,569.99
250,000.00 or more but less than 300,000.00	5,816.35
300,000.00 or more but less than 500,000.00	7,755.13
400,000.00 or more but less than 500,000.00	10,386.34
500,000.00 or more but less than 750,000.00	11,645.29
750,000.00 or more but less than 1,000,000.00	12,904.24
1,000,000.00 or more but less than 2,000,000.00	14,477.93
2,000,000.00 or more	at rate not exceeding fifty-seven and twenty- three percent (57.23%) of one percent (1%).

Provided that in no case shall the tax on gross sales of P2,000,000.00 or more be less than P14,477.93.

(h) On Peddlers engaged in the sale of any merchandise or article of commerce, at the rate not exceeding P62.75 per peddler annually.

Delivery trucks, vans or vehicles used by manufacturers, producers, wholesalers, dealers, or retailers, enumerated under Section 141 of R.A. 7160 shall be exempt from the peddler taxes herein imposed.

The tax herein imposed shall be payable within the first twenty (20) days of January. An individual who will start to peddle merchandise or articles of commerce after January 20 shall pay the full amount of the tax before engaging in such activity.

**ARTICLE B. Other Taxes on Business
Tax on Mobile Traders**

Section 2B.02. Imposition of Tax. There is hereby imposed an annual tax at the time of one percent (1%) on the gross receipts of Mobile Traders.

Section 2B.03 Time of Payment. The tax shall be paid upon the issuance of Mayor's Permit to do business in the municipality.

Section 2B.04 Administrative Provisions.

- (a.) The Municipal Treasurer shall determine the taxable gross receipts by applying the Presumptive Income Level Technique in this code, and thereafter assess and collect the tax due.

Tax on Operators of Public Utility Vehicles

Section 2B.05 On operators of public utility vehicles maintaining booking office, terminal, or waiting station for the purpose of carrying passengers from this municipality under the certificate of public convenience and necessity or similar franchises:

Air Conditioned Buses	Php 5,722.50 per unit
Buses without air conditioning	Php 4,578.00 per unit
Jeepneys/Fieras/Tamaraws/multicabs	Php 572.25 per unit
Vans	Php 1,144.50 per unit

Section 2B.06. Time of Payment. The tax shall be paid within the first twenty (20) days of January of each year.

Tax on Ambulant and Itinerant Amusement Operators

SECTION 2B.07. Imposition of Tax. There is hereby imposed a Tax on Ambulant and Itinerant Amusement Operators during fiestas and fairs at the following rates:

Particulars	Rate PerDay
Circus, carnivals, or the like	P572.25
Merry-Go-Round, roller coaster, ferris wheel, swing, shooting gallery and other similar contrivances	P545.00
Sports/Contest/Exhibitions	P545.00

SECTION 2B.08 On any business, not otherwise specified in the preceding paragraphs, which the Sanggunian concerned may deem proper to tax: Provided, That on any business subject to the excise, value-added or percentage tax under the National Internal Revenue Code, as amended, the rate of tax shall not exceed **two percent (2%)** of gross sales or receipts of the preceding calendar year.

SECTION 2B.09. Time of Payment. The tax herein imposed shall be payable before engaging in such activity.

ARTICLE C

SECTION 2C.01. Exemption. Businesses engaged in the production, manufacture, refining, distribution or sale of oil, gasoline and other petroleum products shall not be subject to any local tax imposed under Article A and Article B.

SECTION 2C.02. Tax on Newly-Started Business. Newly started business entities shall not be subject to and/or liable to the payment of initial local business tax and shall only be subject to the payment of Business Permit and other regulatory fees and charges. In the succeeding calendar year, regardless of when the business started to operate, the tax shall be based on the gross receipts for the preceding calendar year or any fraction thereof, as provided on the pertinent schedules in this Article.

ARTICLE D

Situs of Tax

SECTION 2D.01. Situs of Tax.

a.) For Purposes of collection of the business tax under the “*situs*” of the tax law, the following definition of terms and guidelines shall be strictly observed:

1. Principal Office -the head or main office of the businesses appearing in the pertinent documents submitted to the Securities and Exchange Commission, or the Department of Trade and Industry, or other appropriate agencies as the case may be. The city or municipality specifically mentioned in the articles of the incorporation or official registration papers as being the official address or said principal office shall be considered as the situs thereof. In case there is a transfer or relocation of the principal office to another city or municipality, it shall be the duty of the owner, operator or manager of the business to give due notice of such transfer or relocation to the local chief executives of the cities or municipalities concerned within fifteen (15) days after such transfer or relocation effected.
2. Branch or Sales Office- a fixed place in a locality which conducts operations of the businesses as an extension of the principal office. However, offices used only as display areas of the products where no stocks or items are stored for sale, although orders for the products may be received thereat, are not branch or sales offices as herein contemplated. A warehouse which accepts orders and/or issue sales invoices independent of a branch with sales office shall be considered as a sales office.
3. Warehouse- a building utilized for the storage of products for sale and from which goods or merchandise are withdrawn for delivery to customers or dealers, or by persons acting on behalf of the business. A warehouse that does not accept orders and /or issue sales invoices as aforementioned shall not be considered a branch or sales office.
4. Plantation- a tract of agricultural land planted to trees or seedlings whether fruit bearing or not, uniformly spaced or seeded by broadcast methods or normally arranged to allow highest production. For purpose for this Article, inland fishing ground shall be considered as plantation.
5. Experimental Farms- agricultural lands utilized by a business or corporation to conduct studies, tests, researches or experiments involving agricultural, agri-business, marine or aquatic livestock, poultry, dairy and other similar products for the purpose of improving the quality and quantity of goods and products. However, on-site sales of commercial quantity made in experimental farms shall be similarly imposed the corresponding tax under paragraph (b), Section 8 of this Ordinance.

(b) Sales Allocation

1. All sales made in a locality where there is branch or sales office or warehouse shall be recorded in said branch or sales office or warehouse and the tax shall be payable to the city or municipality where the same is located.
2. If the business concerned has no branch office or sales outlet in the municipality of Ipil, the sale or transaction may be recorded in the place where the principal office of the said business is located. The taxes, however, shall accrue and be paid to municipality of Ipil where the sale or transaction was made or consummated, associated with the delivery of the articles, commodities or things which are the subject matter of the contract of sale.
2. In cases where there is a factory, project office, plant or plantation in pursuit of business, thirty percent (30%) if all sales recorded in the principal office shall be taxable by the city or municipality where the principal office is located and seventy percent (70%) of all sales recorded in the principal office shall be taxable by the city or municipality where the factory, project office, plant or plantation is located.

The sales allocation in (a) and (b) above shall not apply to experimental farms. LGU's where only experimental farms are located shall not be entitled to the sales allocation herein provided for.

3. In case of a plantation located in a locality other than that where the factory is located, said seventy percent (70%) sales allocation shall be divided as follows.

Sixty percent (60) to the city or municipality where the factory is located; and Forty percent (40) to the city or municipality where the plantation is located.

4. In cases where there are two (2) or more factories, project offices, plants or plantations located in different localities, the seventy percent (70%) sales allocation shall be pro-rated among the localities where such factories, project offices, plants and plantations are located in proportion to their respective volumes of production during the period for which the tax is due.

In the case of project offices of services and other independent contractors, the term production shall refer to the costs of projects actually undertaken during the tax period.

5. The foregoing sales allocation under paragraph (3) hereof shall be applied irrespective of whether or not sales are made in the locality where the factory, project office, plant or plantation is located. In case of sales made by the factory, project office, plant or plantation, the sale shall be covered by paragraph (1) or (2) above.
 6. In the case of manufacturers or producers which engage the services of an independent contractor to produce or manufacture some of their products, the rules on situs of taxation provided in this article as clarified in the paragraphs above shall apply except that the factory or plant and warehouse of the contractor utilized for the production or storage of the manufacturer's products shall be considered as the factory or plant and warehouse of the manufacturer.
 7. All sales made by the factory, project office, plant or plantation located in this municipality shall be recorded in the branch or sales office which is similarly located herein, and shall be taxable by this municipality. In case there is no branch or sales office or warehouse in this municipality, but the principal office is located therein, the sales made in the dais factory shall be taxable by this municipality along with the sales made in the principal office.
- (c.) Port of Loading- the city or municipality where the port of loading is located shall not levy and collect the tax imposable under Article 1, Chapter II of this ordinance unless the exporter maintain in said city or municipality its principal office, a branch, sales office, warehouse, factory, plant or plantation in which case the foregoing rule on the mater shall apply accordingly.
- (d) Route Sales- sales made by route trucks, vans or vehicles in this municipality which a manufacturer, producer, wholesaler, maintains a branch or sales office or warehouse shall be recorded in the branch or sales office or warehouse and shall be taxed herein.

This municipality shall tax the sales of the products withdrawn by route trucks from the branch, sales office or warehouse located herein but sold in another locality.

ARTICLE E

Payment of Business Taxes

SECTION 2E.01. Payment of Business Taxes

- (a.) The taxes imposed under Section 2A.02 and 2B.01, Chapter II of this Ordinance shall be payable for every separate or distinct establishment or place where the business subject to the tax is conducted and one line of business does not become exempt by being conducted with some other businesses for which such tax has been paid. The tax on a business must be paid by the person conducting the same.

The conduct or operation of two or more related businesses provided for under Section 2A.02, Chapter II of this Ordinance any one person, natural or juridical, shall require the issuance of a separate permit or license to each business.

(b.) In case where a person conducts or operates two (2) or more of the businesses mentioned in Section 2A.02, Chapter II of this Ordinance which are subject to the same rate of imposition, the tax shall be computed on the combined total gross sales or receipts of the said two (2) or more related businesses.

(c.) In cases where a person conducts or operates two (2) or more businesses mentioned in Section 2A.02, Chapter II of this Ordinance which are subject to different rates of imposition, the taxable gross sales or receipts of each business shall be reported independently and tax thereon shall be computed on the basis of the pertinent schedule.

SECTION 2E.02. Accrual of Payment. Unless specifically provided in this Article, the taxes imposed herein shall accrue on the first day of January of each year.

SECTION 2E.03. Time of Payment. The tax shall be paid once within the first twenty (20) days of January or in quarterly installments within the first twenty (20) days of January, April, July and October of each year. The Sangguniang Bayan may, for a justifiable reason or cause, extend the time for payment of such taxes without surcharges or penalties, but only for the period not exceeding six (6) months.

SECTION 2E.04. Administrative Provisions

(a) Requirements.

1. New applicant to operate any kind of businesses shall secure Barangay Residence Certification and Barangay Business Clearance in his/her Barangay where he or she is residing or business is located.
2. Any person who shall establish, operate or conduct any business, trade or activity mentioned in this Chapter in this municipality shall first obtain a Mayor's Permit and pay the fee therefore, and the business tax imposed under the pertinent Article.
3. All business shall register to the Licensing Office and shall secure Business Registration Permit Plate with a corresponding fee to cover the cost of the business plate except for the tudlos-tudlos vendors and peddlers selling goods door to door.

(b) *Posting Official Receipt.* The Municipal Treasurer shall issue an official receipt upon payment of the business tax. Issuance of the said official receipt shall not relieve the taxpayer of any requirement imposed by the different departments of this municipality.

Every person issued an official receipt for the conduct of a business or undertaking shall keep the same conspicuously posted in plain view at the place of business or undertaking. If individual has no fixed place of business or office, he shall keep the official receipt in his person. The receipt shall be produced upon demand by the Municipal Mayor, Municipal Treasurer, or their duly authorized representatives.

(c) *Invoices or Receipt.* All persons subject to the taxes on business shall, for each sell or transfer of merchandise or goods, or for services rendered, valued at Twenty-Five Pesos (P25.00) or more at any one time, prepare and issue sales or commercial invoices and receipts serially numbered in duplicate, showing among others, their names or styles, if any, and business address. The original of each sales invoice or receipts shall be issued to the purchaser or customer and the duplicate to be kept and preserved by the person subject to the said tax, in his place of business for a period of Five (5) years. The receipts or invoices issued pursuant to the requirement of the Bureau of Internal Revenue for determination of national internal revenue taxes shall be sufficient for purposes of this Code.

(d) *Sworn Statement of Gross Receipts or Sales.* Operators of business subject to the taxes on business shall submit a sworn statement of the capital investment before the start of their business operations and upon application for a Mayor's permit to operate the business. Upon payment of the tax levied in this Chapter, any person engaged in business subject to the business tax paid based on gross sales and/or receipts shall submit a sworn statement of his gross sales/receipts for the preceding calendar year or quarter in such manner and form as may be prescribed by the Municipal Treasurer. Should the taxpayer fail to submit a sworn statement of gross sales or receipts, due among others to his failure to have a book of accounts, records or subsidiaries for his business, the Municipal Treasurer or his authorized representatives may verify or assess the gross sales or receipts of the taxpayer under the best available evidence upon which the tax may be based.

(e) *Submission of Certified Income Tax Return Copy.* All persons who are granted a permit to conduct an activity or business and who are liable to pay the business tax provided in this Code shall submit a certified photocopy of their income tax returns (ITR) on or before April 30 of each year to the Municipal Treasurer. The deficiency in the business tax arising out of the difference in gross receipts or sales declared in the application for Mayor's Permit/Declaration of gross sales or receipts and the gross receipts or sales declared in the ITR shall be payable on or before May 20 of the same year with interest at the rate of ten percent (10%) corresponding to the two percent (2%) per month from January to May. Payments of the deficiency tax made after May 20 shall be subject to the twenty-five percent (25%) surcharge and two Percent (2%) interest for every month counted from January up to the month payment is made.

(f) *Issuance of Certification.* The Municipal Treasurer may, upon presentation or satisfactory proof that the original receipt has been lost, stolen or destroyed, issue a certification to the effect that the business tax has been paid, indicating therein, the number of official receipt issued, upon payment of a fee of One Hundred Pesos (P100.00).

(g) *Transfer of Business to Other Location.* Any business for which a municipal business tax has been paid by the person conducting it may be transferred and continued in any other place within the territorial limits of this municipal without payment of additional tax during the period for which the payment of the tax was made.

(f) *Retirement of Business.* Any person natural or juridical, subject to the tax on business under Article A, Chapter II of this Ordinance shall, upon termination of the business, submit a sworn statement of the gross sales or receipts for the current calendar year within thirty (30) days following the closure. Any tax due shall first be paid before any business or undertaking is fully terminated. Failure on the part of the permittee to retire the business within the period stated above shall be fined in the amount of One Thousand Pesos (P1,000.00).

For the purposes hereof, termination shall mean that business operations are stopped completely. Any change in ownership, management and/or name of the business shall constitute termination as herein contemplated. Unless stated otherwise, assumption of the business by any new owner or manager or registration of the same business under a new name will only be considered by the LGU concerned for record purposes in the course of the renewal of the permit or license to operate the business.

The Municipal Treasurer shall see to it that the payment of taxes of a business is not avoided by simulating the termination or retirement thereof. For this purpose, the following procedural guidelines shall be strictly followed:

- (a) The Municipal Treasurer shall assign every application for the termination or retirement of business to an inspector in his office who shall go to address of the business on record to verify if it is really not operating. If the inspector finds that the business is simply placed under a new name, manager and/or new owner, the Municipal Treasurer shall recommend to the Municipal Mayor the disapproval of the application of the termination or retirement of said business;
- (b) Accordingly, the business continues to become liable for the payment for all taxes, fees, and charges imposed thereon under existing local tax ordinance; and

- (c) In addition, in the case of a new owner to whom the business was transferred by sale or other form of conveyance, said new owner shall be liable to pay the tax or fee for the business and shall secure a new Mayor's permit therefore.
1. In case it is found that the retirement or termination of the business is legitimate and the tax paid during the current year be less than the tax due for the current year based on the gross sales or receipts, the difference in the amount of the tax shall be paid before the business is considered officially retired or terminated.
 2. The permit issued to a business retiring or terminating its operation shall be surrendered to the Local Treasurer who shall forthwith cancel the same and record such cancellation in his books. A company who has retired its business must pay business tax on its gross sales of the preceding year within the first 20 days of January of the current year and on its gross sales from January 1 of the current year up to the date business actually ceased operations.
- (d) *Death of Licensee.* When any individual paying a business tax dies, and the business is continued by a person interested in his estate, no additional payment shall be required for the residue of the term for which the tax was paid.
- (e) *Tax Mapping of Business Establishments.* The Office of the Municipal Treasurer shall be responsible in placing stickers marked "TAX MAPPED" for all business establishments that have been officially tax inspected and assessed.

ARTICLE F PRESUMPTIVE INCOME LEVEL

Section 2F.01 Presumptive Income Level. - For the proper and efficient collection of business taxes provided under Section 143 of the Local Government Code (LGC) of 1991, a stratified schedule of minimum gross sales or receipts implementing the "Presumptive Income Level Assessment Approach (PILAA)" to approximate the gross receipt of each business classification shall be as follows:

SCHEDULE OF MINIMUM GROSS SALES OF BUSINESSES		
1.	Sari-Sari Stores	61,600.00
	Sari-Sari Stores with Liquors & Cigarettes	308,000.00
	Grocery Stores	6,160,000.00
	Supermarket	15,400,000.00
2.	Retailers	616,000.00
3.	Eatery/Carenderia	924,000.00
	Restaurants	3,080,000.00
	Fastfoods	9,240,000.00
4.	Manufacturers	3,080,000.00
5.	Refilling Stations	770,000.00
5.	Wholesalers/Dealers/Distributors	6,160,000.00
6.	Contractors	5,000,000.00
7.	Pawnshops/Lending Institutions	2,000,000.00
8.	Beauty Parlor	616,000.00
9.	Beer House/Beer Gardens	3,080,000.00
10.	Barber Shops	308,000.00
11.	Small Scale Repair Shops and the like	100,000.000
12.	Refreshment Parlor/Cocktail Lounge	1,540,000.00
13.	Bakery (Wholesale and Retail)	1,000,000.00
14.	Tailoring/Dress Shop	770,000.00
15.	Banks	5,000,000.00

16.	Lodging/Pension House Boarding House Hotel	547,500.00 120,000.00 4,927,500.00
17.	Real Estate Lessor	420,000.00
18.	Massage Parlor/Beauty Spa	924,000.00
19.	Internet Cafe	246,400.00
20.	Rice/Corn Mill	2,772,000.00

The Presumptive Income Level (PIL) of gross receipts shall be used to validate the gross receipts declared by taxpayers and/or for establishing the taxable gross receipts where no valid data is otherwise available.

CHAPTER III PERMITS AND REGULATORY FEES

ARTICLE A Mayor's Permit Fee on Business

Section 3A.01. Mayor's Permit. It shall be unlawful for any person or entity to conduct or engaged in any business, trade or occupation within the territorial jurisdiction of the municipality of Ipil for which a permit is required for the proper supervision and enforcement of existing laws and ordinances governing the sanitation, security and welfare of the public and the health of the employees engaged in business, trade or occupation specified in this Code and other ordinances that may hereafter be enacted, without first having secured a permit therefore from the Municipal Mayor.

Section 3A.02. Imposition of Fee. An annual Fee shall be collected for the issuance of a Mayor's Permit to private individuals, companies, corporations, associations to operate a business cooperatives, pursue an occupation or calling, or undertake any activity within the municipality.

The permit fee is payable for every distinct or separate business or place where the business or trade is conducted. One line of business of trade does not become exempt by being conducted with some other business of trade for which the permit fee has been obtained and the corresponding fee paid for.

For purpose of the Mayor's Permit Fee, the following Philippines definition of business size is hereby adopted:

Enterprise Scale	Asset Limit	Workforce
Micro-Industry	₱ 150,000 and below	No specific
Cottage Industries	Above ₱ 150,000 to ₱ 1.5M	Less than 10
Small-scale Industries	₱ 1.5M to ₱ 15M	10-99
Medium-scale Industries	₱ 15M to ₱ 60M	100-199
Large-scale Industries	Above ₱ 60M	200 more

(a) On business subject to graduated Fixed taxes

Amount of Fee Per Annum

Classification/Category		Rate of Fee
1.	On Manufacturers/Importers/Producers	
	Micro-Industry	₱ 300.00
	Cottage Industries	500.00
	Small-scale Industries	1,000.00
	Medium-Scale Industries	1,500.00
	Large-Scale Industries	2,000.00

2.	On Banks Rural, Thrift and Savings Banks Commercial, Industrial and Development Banks Universal Banks	₱ 5,000.00 15,000.00 20,000.00
3.	On Other Financial Institutions Small Medium Large	₱ 3,000.00 5,000.00 15,000.00
4.	On Contractors Micro-Industry Cottage Industries Small-scale Industries Medium-Scale Industries Large-Scale Industries	₱ 1,000.00 2,000.00 3,000.00 4,000.00 5,000.00
5.	On Service Establishments Micro-Industry Cottage Industries Small-scale Industries Medium-Scale Industries Large-Scale Industries	₱ 300.00 500.00 1,000.00 1,500.00 2,000.00
6.	On Wholesalers/Retailers/Dealers or Distributors Micro-Industry Cottage Industries Small-scale Industries Medium-Scale Industries	₱ 300.00 500.00 1,000.00 1,500.00

	Large-Scale Industries	2,000.00
7.	On Wholesalers/Retailers/Dealers or Distributors of Liquors (foreign, domestic and fermented), Distilled Spirits and Manufactured Tobacco Micro-Industry Cottage Industries Small-scale Industries Medium-Scale Industries Large-Scale Industries	₱ 1,000.00 2,000.00 3,000.00 4,000.00 5,000.00
8.	On Trans-loading Operations Medium Large	₱ 2,000.00 4,000.00
9.	Other Businesses Micro-Industry Cottage Industries Small-scale Industries Medium-Scale Industries Large-Scale Industries	₱ 300.00 500.00 1,000.00 1,500.00 2,000.00

10.	Gasoline Station	₱ 5,000.00
	Small (1-5 nozzles)	10,000.00
	Medium (6-10 nozzles)	15,000.00
	Large (11 nozzles and up)	
	LPG Dealers	
	Cottage	₱ 3,000.00
	Small	5,000.00
	Medium	10,000.00
	Large	20,000.00
Sec. 9 of DOE DC No. 2003-011-10: CERTIFICATE OF COMPLIANCE - The DOE, through the OIMB, shall issue a Certificate of Compliance upon the complete submission of and full compliance by the Retail Outlet owner and/or operator with the requirements provided in the foregoing Sections of this Rule. No Retail Outlet shall operate until a Certificate of Compliance is so secured from the DOE. The owner and/or operator shall be deemed to be engaged in the ILLEGAL TRADING of Liquid Petroleum Products if he/she operates without the Certificate of Compliance and/or violates any of the foregoing Sections.		
11.	Trucking/Hauling	
	-Below 5 units	₱ 1,000.00
	-5 to 10 units	3,000.00
	-11 units and above	5,000.00
12.	Cooperatives	₱ 1,000.00
13.	Educational Institutions and any other business not mention in the chapter	
	Cottage	₱ 1,000.00
	Small	5,000.00
	Medium	10,000.00
	Large	20,000.00

- (b). **For new business.** The Mayor's Permit Fee is payable for every distinct or separate business or place where the business or trade is conducted and the corresponding fees shall be paid as follows:

Classification/Category	Rate of Fee
Micro-Industry	₱ 200.00
Cottage Industries	500.00
Small-scale Industries	1,000.00
Medium-Scale Industries	1,500.00
Large-Scale Industries	2,000.00

Section 3A.03. Time and Manner of Payment. The fee for the issuance of the Mayor's Permit shall be paid to the Municipal Treasurer upon application before any business or undertaking can be lawfully begun or pursued and within the first twenty (20) days of January of each year in case of renewal thereof.

For a newly-started business or activity that starts to operate after January 20, the fee shall be reckoned from the beginning of the calendar quarter. When the business or activity is abandoned, the fee shall not be exacted for a period longer than the current quarter and the business activity is abandoned, no refund of the fee corresponding to the unexpired quarter or quarters shall be made.

Section 3A.04. Business Inspection Fee. Any Business operation in the municipality should be charge an inspection Fee of P350.00 for the service rendered by business permit and license inspection. The inspection fee shall be uniformed to all business establishment operation and shall be payable per annum which shall be due together with other regular fees.

Section 3A.05. Business Permit Registration Plate. All persons applying for the business issuance of a Business/Mayor's Permit shall be required to pay an not to exceed the amount of Three Hundred Pesos (P300.00) to defray the cost of the Business Permit Registration Plate and the cost of freight and handling incurred by the Town for the fabrication of the business permit registration plate, to wit:

- New Business Permit Registration Plate
- Annual/Quarterly Renewal Sticker

Section 3A.05. Administrative Provisions

(a.) Supervision and control over establishments and places. The

Municipal Mayor shall supervise and regulate all establishments and places subject to the payment of the permit fee. He shall prescribe rules and regulations as to the mode or manner on which they shall be conducted in so far as may be necessary to maintain peaceful, healthy, and sanitary conditions in the municipality.

(b.) Application for Mayor's Permit: False Statement. An application for

a Mayor's Permit shall be filed with the office of the Municipal Mayor. The form for the purpose shall be issued by the same Office and shall set forth the requisite information including the name and residence of the applicant, the description of business or undertaking that is to be conducted, and such other data or information as may be required.

1. New business registration

1. Proof of business registration, incorporation, or legal personality. (i.e. DTI/SEC/CDA Registration)
2. Basis for computing taxes, fees, and charges (business capitalization);
3. Occupancy Permit, if required by national laws (e.g., Building Code) and local laws;
4. Contract of Lease (if lessee); and
5. Barangay clearance (for business which are not required occupancy permits).

2. Renewal Application -

1. Basis for computing taxes, fees and charges (e.g., Income Tax Returns); and
2. Barangay clearance

Upon submission of the application, it shall be the duty of the proper authorities to verify if other municipal requirements regarding the operation of the business or activity such as sanitary requirements, installation of power and light requirements, as well as other safety requirements are complied with. The permit to operate shall be issued only upon compliance with such safety requirements and after the payment of the corresponding inspection fees and other impositions required by this Revenue Code and other municipal tax ordinances.

Any false statement deliberately made by the applicant shall constitute sufficient ground for denying or revoking the permit issued by the Mayor, and the applicant or licensee may be prosecuted in accordance with the penalties provided in this Article.

A Mayor's Permit shall be refused to (1) any person who previously violated any ordinance or regulation governing permits granted; (2) whose business establishment or undertaking does not conform with zoning regulations, and safety, health and other requirements of the municipality; (3) who has unsettled tax obligation, debt or other liability to the government; (4) who is disqualified under any provision of law or ordinance to establish or operate the business applied for. Likewise, a Mayor's permit shall be denied to any person or applicant for a business who declares an amount of gross sales or receipts that are manifestly below industry standards or the Presumptive Income Level of gross sales or receipts as established in the municipality for the same or a closely similar type of activity or business.

(a.) Issuance of Permit; Contents of Permit. Upon approval of the application of a Mayor's Permit, two (2) copies of the application duly signed by the Municipal Mayor shall be return to the applicant. One (1) copy shall be presented to the Municipal Treasurer as basis for the collection of the Mayor's Permit fee and the corresponding business tax.

The Mayor's Permit shall be issued by the Municipal Mayor upon presentation of the receipt for the payment of the Mayor's Permit and the official receipt issued by the Municipal Treasurer for the payment of business tax.

Every permit issued by the Mayor shall show the name and residence of the applicant, his nationality and marital status; nature of the organization, that is whether the business is a sole proprietorship, corporation or partnership, etc.; location of the business; date of issue and expiration of the permit; and other information as may be necessary.

The Municipality shall, upon presentation of satisfactory proof that the original of the permit has been lost, stolen or destroyed, issue a duplicate of the permit upon the payment of One Hundred Fifty Pesos (P 150.00).

(b.) Posting of Permit. Every permittee shall keep his permit conspicuously posted at all times in his place of business or office or if he has no place of business or office, he shall keep the permit in his person. The permit shall be immediately produced upon demand by the Municipal Mayor, the Municipal Treasurer or any of their duly authorized representatives.

(c.) Duration of Permit and Renewal. The Mayor's Permit shall be granted for a period of not more than one (1) year and shall expire on the thirty-first (31st) of December following the date of issuance unless revoked or surrendered earlier. Every permit shall cease to be in force upon revocation or surrender thereof. The permit issued shall be renewed within the first twenty (20) days of January. It shall have a continuing validity only upon renewal thereof and payment of the corresponding fee.

(d.) Revocation of Permit. When a person doing business under the provisions of this Code violates any provision of this Article, refuses to pay an indebtedness or liability to the municipality or abuses his privilege to do business to the injury of the public moral or peace; or when a place where such business is established is being conducted in a disorderly or unlawful manner, is a nuisance, or is permitted to be used as a resort for disorderly characters, criminals or women of ill-repute, the Municipal Mayor may, after investigation, revoke the Mayor's Permit. Such revocation shall operate to forfeit all sums which may have been paid in respect of said privilege, in addition to the fines and imprisonment that maybe imposed by the Court for violation of any provision of this Ordinance governing the establishment and maintenance of business, and to prohibit the exercise thereof by the person whose privilege is revoked, until restores by the Sangguniang Bayan.

Section 3A.06. Rules and Regulations on Certain Establishments.

(a) On cafes, cafeterias, ice cream and other refreshment parlors, restaurants, soda fountain bars, carinderia or food caterers. No owner of said establishments shall employ any cook, or food dispenser without the Food Handler's Certificate from the Municipal Health Officer, renewable Annually.

(b) Establishments selling cooked and readily edible foods shall have them adequately covered and protected from dust, flies and other insects, and shall follow strictly the rules and regulations on sanitation promulgated by the Municipal Health Officer and existing laws or Ordinances.

(c) Sauna bath, massage, barber and beauty shops. Said shops shall not be allowed to operate with masseurs, barbers, and beauticians without having secured the necessary corresponding medical certificate from the Municipal Health Officer.

ARTICLE B

Permit Fee for Cockpit Owners/Operators/Licenses/Promoters and Personnel

Section 3B.01. Definitions. When used in this Article.

- (a) **Cockpit** includes any place, compound, building or portion thereof, where cockfights are held, whether or not money bets are made on the results of such cockfights.
- (b) **Cockfighting** shall embrace and mean the commonly known game or term “cockfighting derby, pintakasi or tubada” or each equivalent term in different Philippine localities.
- (c) **Local Derby** is an invitational cockfight participated in by gamecocks or cockfighting “afficionados” of the Philippines with “pot money” awarded to the proclaimed winning entry.
- (d) **International Derby** refers to an invitational cockfight participated in by local and foreign gamecocks or cockfighting “aficionados” with “pot money” awarded to the proclaimed winning entry.
- (e) **Bet taker or promoter** refers to a person who alone or with another initiates a cockfight and/or calls and take care of bets from the owners of both gamecocks and those of other bettors before he orders commencement of the cockfight thereafter distributes won bets to the winners after deducting a certain commission, or both.
- (f) **Gaffer (taga-tari)** refers to a person knowledgeable in the art of arming fighting cocks with gaffs on one or both legs.
- (g) **Referee (Sentenciador)** refers who a person who watches and oversees the proper gaffing of fighting cocks; determine the physical condition of gamecocks while cockfighting is in progress, the injuries sustained by the cocks and their capability to continue fighting, and decides and makes known his decision either by word or gesture the result of the cockfighting by announcing the winner or deciding a tie in a contest game.
- (h) **Bettor** a person who participates in cockfights and with the use of money or other things of value, bets with other bettors or through the bet taker or promoter and win or lose his bet depending upon the result of the cockfight as announced by the referee or sentenciador. He may be the owner of fighting cock.
- (i) **Matchmaker** one who arranges cockfights.
- (j) **Cashier** a person in charge of the cash transactions of a cockpit.
- (k) **Medical Aid** a person in charge in treating wounded cockpit

Section 3B.02. Imposition of Fees. An annual Permit Fee shall be collected for every hack fight and derby.

Particulars	Cockpit Fees (in Php)
From the Owner/Operator/Licensee of the Cockpit	
1. Application Filling Fee	20,000.00
2. Annual Cockpit Permit Fee	10,000.00

From cockpit personnel	
1. Promoter/Host	2,000.00
2. Cockpit Manager	1,000.00
3. Referee	200.00
4. Bet Taker "Kristo" (Inside/Outside of the Rueda"	300.00
5. Bet Manager "Maciador/ Kasador"	500.00
6. Gaffer "Mananari"	200.00
7. Cashier	200.00
8. Derby (Matchmaker)	1,000.00
9. Medical Aid	200.00
Hackfight	100.00/fight
Derby	

Section 3B.03. Franchise Application. No cockpit shall be established, operated and maintained without first securing a franchise from the Sangguniang Bayan and which shall be for a period of ten (10) years.

Licensing of Cockpits. Subject to the provisions of Book II of Republic Act 7160, the Sangguniang Bayan shall enact an Ordinance authorizing the issuance of license to operate a cockpit in the Municipality of Ipil pursuant to the provisions of Article 99 Section (a) Subsection (3) Paragraph (v) of the rules and Regulations Implementing the Local Government Code of 1991. The following requirements must be fully complied with prior to the issuance of licenses:

(a) New License:

1. Zoning/Locational Clearance issued by the Zoning Administrator
2. Building Plan and Design duly approved by the Municipal Engineer
3. Sanitary Permit/Clearance issued by the Municipal Health Office
4. Payments of the required city/municipal taxes and fees

(b) Annual Renewal

1. Certification from the Municipal Engineer to the effect that such cockpit is free from material, structural or other physical hazards
2. Sanitary Permit/Clearance issued by the Municipal Health Office
3. Payments of the required city/municipal taxes and fees

Section 3B.04. Registration of Cockpit. Cockpit in the Municipality of Ipil after Having been granted authority to operate by the Sangguniang Bayan shall register at the Office of the Municipal Mayor. No cockpits shall be allowed to operate without the proper registration certificate.

Section 3B.05. Time and Manner of Payment.

- (a) The application filling fee shall be payable to the Municipal Treasurer upon application for a permit or license to operate and maintain cockpits.
- (b) The cockpit registration fee shall be also payable upon application for a permit before a cockpit can operate and shall be secured within the first twenty days of January of each year in case of renewal;
- (c) The permit fees on cockpit personnel shall be paid before they participate in a cockfight and shall be paid annually upon renewal of the permit on the birth month of permittee.

Section 3B.06. Applicability Clause. The provision of PD 449, otherwise known as the Cockfighting Law of 1974, PD 1802 (Creating the Philippine Game Fowl Commission), and such other pertinent laws shall apply to all matters regarding the operation of cockpits and the holding of cockfights in this Municipality.

Section 3B.07. Administrative Provision: Ownership, Operation and Management of Cockpits. Only Filipino citizens not otherwise inhibited by existing laws shall be allowed to own, manage and operate cockpits. Cooperative capitalization is encouraged.

- (a.) **Establishment of Cockpits.** The Sangguniang Bayan shall determine the number of cockpits to be allowed on this municipality.
- (b.) **Cockpit Site and Construction.** Cockpits shall be constructed and operated within the appropriate areas as prescribed in the Zoning Ordinance of the municipality of Ipil. The Municipal Mayor shall see to it that no cockpits are constructed within or near existing residential or commercial areas, hospitals, school, churches or other public building. Owners, lessees, or operators of cockpits which are now in existence and do not conform to this requirements are given three (3) years from date of effectivity of Presidential Degree No. 449 to comply herewith. Approval or issuance of building permits for the construction of cockpits shall be made by the Municipal Engineer in accordance with the Building Ordinance of municipality of Ipil, or engineering laws and practices.
- (c.) **Holding of Cockfights.** Except as provided in this Ordinance, cock fighting shall be allowed only in licensed cockpits during Sundays and legal holidays and during local fiestas for not more than three (3) days. It may be held during municipal, agricultural, commercial or industrial fair, carnival or exposition for similar period of three (3) days upon resolution of the municipality where such fair, carnival or exposition shall be allowed within the month of a local fiesta or more than two more occasions a year in the same city.

Provided further, that no cock fighting shall be held on December (30) Rizal Day), December 25 (Christmas Day), November 30 (National Heroes Day), June 12 (Philippine Independence Day), Holy Thursday, Good Friday, Election or Referendum Day and during Registration Day for such Election or Referendum Day.

- (a). Cock Fighting for Entertainment of Tourist or for Charitable Purposes. Subject to the preceding subsection hereof, the Municipal Mayor or his authorized representative may also allow the holding of cock fighting for the entertainment of foreign dignitaries or for tourist, or for returning Filipinos, commonly known as
 - (b). "Balikbayan", or for the support of national fund raising campaign for charitable purposes as may be authorized by the Office of the Municipal Mayor upon resolution of the Sangguniang Bayan, in licensed cockpits or in playgrounds or parks: Provided that this privilege shall be extended for only on time, for a period not exceeding three, within a year.
- (d.) **OTHER GAMES DURING COCKFIGHTS PROHIBITED.** No gambling of any kind shall be permitted on the premises of the cockpit or place of cock fighting during cockpits. The owner, manager or lessee of such cockpit and the violators of this injunction shall be criminally liable under the provisions of Section 49 hereof.

Section 3B.08. Penal Provisions. Any violation of the provisions of this ordinance and the rules and regulations promulgated by the Chief of Police pursuant there to shall be punished as follows:

- (a.) By prison correctional in its maximum period and a fine of TWO THOUSAND PESOS (Php2,000.00), with subsidiary imprisonment in case of insolvency, when the offender if the financier, owner, manager or operator of a cockpit, or the gaffer, referee or bet taker in cockfights, or the offender is guilty of allowing, promoting or participating in any other kind of gambling in the premises of cockpits during cockfights.
- (b.) By prison correctional or fine or not less than SIX HUNDRED PESOS (Php600.00) or more than TWO THOUSAND PESOS (Php2,000.00) or both, such imprisonment and fine at the discretion of the court, with subsidiary imprisonment in case of insolvency, in case of any other offender.

ARTICLE C
Special Permit Fee for Special Cockfighting

Section 3C.01. Imposition of Fees. A special Permit Fee shall be collected for the following cockfighting:

Particulars	Fees (in Php)
National/Local Derby	2,000.00/day
International Derby	4,000.00/day

Section 3C.02. Exclusion. Regular cockfights i.e., those held during Sunday, legal holidays and local fiestas and international derbies shall be excluded from the payment of fees herein imposed.

Section 3C.03. Time and Manner of Payment. The fees herein imposed shall be payable to the City/Municipal Treasurer before the special cockfights and derbies can lawfully held.

Section 3C.04. Applicability Clause. The provision of PD 449, otherwise known as the Cockfighting Law of 1974, PD 1802 (Creating the Philippine Game fowl Commission), and such other pertinent laws shall apply to all matters regarding the operation of cockpits and the holding of cockfights in this municipality.

Article D
Fees on Impounding of Astray Animals

Section 3D.01. Definitions. When used in this Article. *Astray Animal* means an animal which is set loose unrestrained, and not under the complete control of its owner, or the charge or in possession thereof, found roaming at-large in public or private places whether fettered or not.

- (a) *Public Place* includes national, provincial, municipal, or barangay streets, parks, places, and such other places open to the public.
- (b) *Private Place* includes privately-owned streets or yards, rice fields or farmlands, or lots owned by an individual other than the owner of the animal.
- (c) *Large Cattle* includes horses, mules, asses, carabaos, cows, and other domestic members of the bovine family.

Section 3D.02. Imposition of Fee. There shall be imposed the following fees for each day or fraction thereof on each head of astray animal found running or roaming at large, or fettered in public or private places:

AMOUNT OF FEE

- | | |
|------------------------------------|--|
| a.) Large Cattle and other animals | Actual Incurred expenses during impounding |
|------------------------------------|--|

Section 3D.03. Time of Payment. The impounding fee shall be paid to the Municipal Treasurer prior to the release of the impounded animal to its owner.

Section 3D.04. Administrative Provisions.

- (a) For purposes of this Article, the Barangay Tanods of the Municipality are hereby authorized to apprehend and impound astray animals in the municipal corral or a place duly designated for such purpose. He shall also cause the posting of notice of the impounded astray animal in the Municipal Hall for three [3] consecutive days, starting one day after the animal is impounded, within which the owner is required to claim and establish ownership of the impounded animal. The Municipal Mayor and Municipal Treasurer shall be informed of the impounding.

(b) Impounded animals not claimed within five (5) days after the date of impounding shall be sold at public auction under the following procedures:

1. The Municipal Treasurer shall post notice for three (3) days in three (3) conspicuous places including the main door of the Municipal Hall and the public markets. The animal shall be sold to the highest bidder. Within three (3) days after the auction sale, the Municipal Treasurer shall make a report of the proceedings in writing to the Municipal Mayor.

2. The owner may stop the sale by paying at any time before or during the auction sale, the impounding fees due and the cost of the advertisement and conduct of sale to the Municipal Treasurer, otherwise, the sale shall proceed.

3. The proceeds of the sale shall be applied to satisfy the cost of impounding, advertisement and conduct of sale. The residue over the cost shall accrue to the General Fund of the Municipality.

4. In case the impounded animal is not disposed of within ten (10) days from the date of notice of public auction, the same shall be considered sold to the Municipal Government for the amount equivalent to the poundage fees due.

Section 3D.05. Penalty. Owners whose animals are caught astray and incurring damages to plants and properties shall pay the following fines:

(a) First offense	P 100.00
(b) Second offense	200.00
(c) For the third offense and each subsequent offense	300.00

In addition to the fine, the owners shall pay the amount of damage incurred, if any, to the property owner.

ARTICLE E

Permit Fee on Circus and Other Parades

Section 3E.01. Imposition of Fee. There shall be collected a Mayor's Permit Fee of Five Hundred (P500.00) pesos per day on every circus and other parades using banners, floats or musical instruments carried on in this municipality.

Section 3E.02. Time and Manner of Payment. The fee imposed herein shall be due and payable to the Municipal Treasurer upon application for a permit to the Municipal Mayor at least three (3) days before the scheduled date of the circus or parade and on such activity shall be held.

Section 3E.03. Exemption. Civic and military parades as well as religious processions shall not be required to pay the permit fee imposed in this Article.

Section 3E.04. Administrative Provisions.

(a) Any persons who shall hold a parade within this municipality shall first obtain from the Municipal Mayor before undertaking the activity. For this purpose, a written application in a prescribed form shall indicate the name, address of the applicant, the description of the activity, the place or places where the same will be conducted and such other pertinent information as may be required.

(b) The Station Commander of the Philippine National Police shall promulgate the necessary rules and regulations to maintain an orderly and peaceful conduct of the activities mentioned in this Article. He shall also define the boundary within which such activities may be lawfully conducted.

ARTICLE F

Registration and Transfer Fees on Large Cattle.

Section 3F.01 Definition. For purposes of this Article, “large cattle” includes a two-year old horse, mule ass, carabao, cow or other domesticated member of the bovine family.

Section 3F.02. Imposition of Fee. The owner of a large cattle is hereby required to register said cattle with the Municipal Treasurer for which a certificate of ownership shall be issued to the owner upon payment of a registration fee as follows:

	Service Fee
a.) For certificate of Ownership	100.00
b.) For certificate of transfer	100.00
c.) For registration of Private Brand	200.00

The transfer fee shall be collected only once if a large cattle is transferred more than once in a day.

Section 3F.03. Time and Manner of Payment. The registration fee shall be paid to the Municipal Treasurer upon registration or transfer of ownership of the large cattle.

Section 3F.04. Administrative Provisions. Large cattle shall be registered with the Municipal Treasurer upon reaching the age of two (2) years. The ownership of a large cattle or its sale or transfer of ownership to another person shall be registered with the Municipal Treasurer. All branded and counter-branded large cattle presented to the Municipal Treasurer shall be registered in a book showing among others , the name and residence of the owner , the consideration or purchase price of the animal in cases of sale or transfer, and the class, color, sex, brands and other identification marks of the cattle. These data shall also be stated in the certificate of ownership issued to the owner of the large cattle.

The transfer of the large cattle, regardless of its age, shall be entered in the registry book setting forth, among others, the names and the residence of the owners and the purchaser; the consideration or purchase price of the animal for sale or transfer, class, sex, brands and other identifying marks of the animals; and a reference by number to the original certificate of ownership with the name of the municipality issued to it.

No entries of transfer shall be made or certificate of transfer shall be issued by the Municipal Treasurer except upon the production of the original certificate of ownership and certificate of transfer and such other documents that show title of the owner.

Section 3F.05. Applicability Clause. All other matters relating to the registration of large cattle shall be governed by the pertinent provisions of the Revised Administrative Code and other applicable laws, ordinances and rules and regulations.

ARTICLE G

PERMIT FEE FOR EXCAVATION

Section 3G.01. Imposition of Fee. There shall be imposed the following fees on every person who shall make or cause to be made any excavation on public or private streets within this municipality.

	Amount of Fee
(a) For crossing streets with concentrate pavement	
1. For crossing concentrate pavement (minimum area 2.00x600m, 12sq.m.	P 2,500.00
2. For crossing across base of streets with concentrate pavement, per linear meter (boring method)	100.00

(b) For crossing streets with asphalt pavement 1. Minimum 2. Additional fee for each linear meter crossing the streets (minimum width of excavation, 0.80m)	P 400.00 100.00
(c) For crossing the streets with gravel pavement 1. Minimum Fee 2. Additional fee for each linear meter parallel to streets (minimum width of excavation, 0.3 meters)	P 500.00 200.00
(d) For crossing existing curbs and gutters resulting in the damage per linear meter	P 200.00
(e) Additional fee for each day of delay in excess of excavation period provided Mayor's Permit	P 200.00
(f) Provided	That all excavation resulting to damage shall be restored to its original form and shape

Section 3G.02. Time and Manner of Payment. The fee imposed herein shall be paid to the Municipal Treasurer by every person who shall make any excavation or cause any excavation to be made upon application for Mayor's Permit, but in all cases, prior to the excavation.

A cash deposit in an amount equal to the fee imposed shall be deposited with the Municipal Treasurer at the same time the permit is paid. The cash deposited shall be forfeited in favor of the Municipal Government in case the restoration to its original form of the street excavated is not made within seven (7) days after the purpose of the excavation is accomplished.

Section 3G.03 Administrative Provisions.

(a) No person shall undertake or cause to undertake any digging or excavation, of any part or portion of the municipal streets of Ipil, Zamboanga Sibugay unless a permit shall have been first secured from the Office of the Municipal Mayor specifying the duration of the excavation.

(b) The Municipal Engineer/ Municipal Building Official shall supervise the digging and excavation and shall determine the necessary width of the streets to be dug or excavated. Said official shall likewise inform the Municipal Treasurer of any delay in the completion of the excavation work for purposes of collection of the additional fee.

(c) In order to protect the public from any danger, appropriate signs must be placed in the arena where work is being done.

ARTICLE H

Fees for Sealing and Licensing of Weights and Measures

Section 3H.01. Implementing Agency. The Municipal Treasurer shall strictly enforce the provisions of the Regulation of Practices Relative to Weights and Measures, as provided in Chapter II of the Consumer Act, Republic Act No. 7394.

Section 3H.02. Sealing and Testing of Instruments of Weights and Measures. All instruments for determining weights and measures in all consumer and consumer related transactions shall be tested, calibrated and sealed every six (6) months by the official sealer who shall be Municipal Treasurer or his duly authorized representative upon payment of fees required under this Article: Provided, that all instruments of weights and measures shall continuously be inspected

for compliance with the provisions of this Article. Sticker officially printed for LGU of Ipil may be used in sealing weight and measure in lieu of sealing wax.

Section 3H.03. Imposition of Fees. Every person before using instruments of weights and measures within this municipality shall first have them sealed and licensed annually and pay therefore to the Municipal Treasurer the following fees:

Amount of Fee

a. For sealing linear metric measures for meter sticks chains, and tapes	P 25.00
b. For sealing metric instruments of weights	
b.1 Apothecary Balances of Precision	
1,000 grams or less	P 50.00
Over 1,000 grams	100.00
b.2 Platform Scales	
25 kgs or less	50.00
over 25 up to 100 kgs	100.00
over 100 up to 500 kgs	150.00
over 500 up to 2,000 kgs	500.00
over 2,000 kgs	1,000.00
b.3 Steelyards or Espada Type Scales	
25 kgs or less	25.00
over 25 up to 100 kgs	50.00
over 100 kgs	100.00
b.4 Clock Type Scales	
5 kgs or less	40.00
over 5 up to 10 kgs	60.00
Above 10 kgs	100.00
c. Bronze Wire Seal	100.00

For each and every re-testing and re-sealing of weights measures instruments including gasoline pumps outside the office upon request of the owner or operator, an additional service charge of fifty (50.00) pesos for each instrument shall be collected.

Section 3H.04. Payment of Fees and Surcharge. The fees herein imposed shall be paid and collected by the Municipal Treasurer when the weights or measuring instruments are sealed, before their use and thereafter, on or before the anniversary date thereof.

The official receipt serving as license to use the instrument is valid for one (1) year from the date of sealing unless such instrument becomes defective before the expiration period. Failure to have the instrument re-tested and the corresponding fees therefore paid within the prescribed period shall subject the owner or user to a surcharge of five hundred percent (500%) of the prescribed fees which shall no longer be subject to interest.

Section 3H.05. Place of Payment. The fees herein levied shall be paid in the municipality where the business is conducted by persons conducting their business therein. A peddler or itinerant vendor using only one (1) instrument of weight or measure shall pay the fee in the municipality where he maintains his residence.

Section 3H.06. Exemptions.

(a) All instruments for weights and measures used in government work or maintained for public use by any instrumentality of the government shall be tested and sealed free.

(b) Dealers of weights and measures instruments intended for sale.

Section 3H.07. Administrative Provisions.

- (a) The official receipt for the fee issued for the sealing of a weight or measure shall serve as a license to use such instrument for one year from the date of sealing, unless deterioration or damage renders the weight or measure inaccurate within that period. The license shall expire on the day and the month of the year following its original issuance. Such license shall be preserved by the owner and together with the weight or measure covered by the license, shall be exhibited on demand by the Municipal Treasurer or his deputies.
- (b) The Municipal Treasurer is hereby required to keep full sets of secondary standards, which shall be compared with the fundamental standards in the Department of Science and Technology annually. When found to be sufficiently accurate, the secondary standards shall be distinguished by label, tag or seal and shall be accompanied by a certificate showing the amount of its variation from the fundamental standards. If the variation is of sufficient magnitude to impair the utility of instrument, it shall be destroyed at the Department of Science and Technology.
- (c) The Municipal Treasurer or his deputies shall conduct periodic physical inspection and test weight and measure instruments within the locality.
- (d) Instruments of weight and measures found to be defective and such defect is beyond repair shall be confiscated in favor of the government and shall be destroyed by the Municipal Treasurer in the presence of the Provincial Auditor or his representative.

Section 3H.08. Fraudulent Practices Relative to Weights and Measurers

The following acts related to weights and measures are prohibited:

- (a) For any person other than the official sealer or his duly authorized representative to place an official tag, seal, sticker, mark, stamp, brand or other characteristic sign used to indicate that such instrument of weight and measure has officially been tested, calibrated, sealed or inspected;
- (b) For any person to imitate any seal, sticker, mark, stamp, brand, tag or other characteristic design used to indicate that such instrument of weight or measure has been officially tested, calibrated, sealed or inspected;
- (c) For any person other than the official sealer or his duly authorized representative to alter in any way the certificate or receipt given by the official sealer or his duly authorized representative as an acknowledgement that the instrument for determining weight or measure has been fully tested, calibrated, sealed or inspected;
- (d) For any person to make or knowingly sell or use any false or counterfeit seal, sticker, brand, stamp, tag, certificate or license or any dye for printing or making the same or any characteristic sign used to indicate that such instrument of weight or measure has been officially tested, calibrated, sealed or inspected;
- (e) For any person other than the official sealer or his duly authorized representative to alter the written or printed figures, letters or symbols on any official seal, sticker, receipt, stamp, tag, certificate or license used or issued;
- (f) For any person to use or reuse any restored, altered, expired, damaged stamp, damaged certificate or license for the purpose of making it appear that the instrument of weight or measure has been tested, calibrated, sealed or inspected;
- (g) For any person engaged in the buying and selling of consumer products or of furnishing services the value of which is estimated by weight or measure to possess, use or maintain with intention to use any scale, balance, weight or measure that has not been sealed or if previously sealed, the license therefore has expired and has not been renewed in due time;

- (h) For any person to fraudulently alter any scale, balance, weight or measure after it is officially sealed;
- (i) For any person to knowingly use any false scale, balance, weight or measure, whether sealed or not;
- (j) For any person to fraudulently give short weight or measure in the making of a scale;
- (k) For any person, assuming to determine truly the weight or measure of any article brought or sold by weight or measure, to fraudulently misrepresent the weight or measure thereof; or
- (l) For any person to procure the commission of any such offense above mentioned by another. Instruments officially sealed at some previous time which have remained unaltered and accurate and the seal or tag officially affixed therein remains intact and in the same position and condition in which it was placed by the official sealer or his duly authorized representative shall, if presented for sealing, be sealed promptly on demand by the official sealer or his duly authorized representative without penalty except a surcharge equal to two (2) times the regular fee fixed by law for the sealing of an instrument of its class, this surcharge to be collected and accounted for by the Municipal Treasurer in the same manner as the regular fees for sealing such instruments.

Section 3H.09. Penalties.

Any person who shall violate the provisions of paragraphs (a) to (f) of Section 3H.08 shall, upon conviction, be subject to a fine of not less than Five hundred pesos (500.00) but not more than One thousand pesos (P1,000.00) or by imprisonment of not more than (1) month, but not more than six (6) months.

Any person who shall violate the provisions of paragraph (g) of Section 3H.08 for the first time shall be subject to fine of not less than Five hundred pesos (P500.00) or by imprisonment of not less than one (1) month but not more than five (5) years, or both, upon the discretion of the court.

The owner- possessor or user of instrument of weights and measure enumerated in paragraph (h) to (l) of Section 3H.08 shall, upon conviction, be subject to a fine of not less than Five hundred pesos (P500.00) or imprisonment not exceeding one (1) year, or both, upon the discretion of the court.

Section 3H.10. Authority of the Municipal Treasurer to compromise. At any time after the apprehension of a taxpayer for violation of this article not involving the commission of fraud, before the corresponding complaints shall have been filed in the proper court, the Municipal Treasurer is authorized to impose a compromise penalty of not less than (FIVE HUNDRED PESOS) P 500.00.

ARTICLE I

Calibration and Sealing of Dispensing Pumps

Section 3I.01. Calibration and Sealing of Dispensing Pumps. All dispensing pumps used in Retail Outlets of Liquid Petroleum Products within the Municipality of Ipil must be properly calibrated twice a year and sealed by the Treasurer or his/her authorized representative immediately after calibration.

A dispensing pump that is not calibrated and sealed or goes off-calibration shall be marked with an "OUT OF ORDER" sign and shall not be used until the said pump is calibrated and resealed.

All calibration shall be duly documented and signed the mechanic performing the calibration and countersigned by the Retail Outlet owner and or/operator of the shift supervisor of the Retail Outlet. A copy of these calibration documents shall kept on file at the Retail Outlet.

For independently owned Retail Outlet with its own liquid petroleum Product Brand Name, the Owner and/or operator of the said Retail Outlet shall be responsible for complying with Section 4.

Section 3I.02. Undelivery in The Dispensing Pumps-The quantity of Liquid Petroleum Products delivered by the dispensing pump meter shall not be less than the actual quantity by more than fifty (50) millimeters for every ten (10) liters as measured by a calibrating bucket certified and sealed by the DOST-ITDI.

The calibrating bucket shall be filled to the ten (10) liter mark three (3) times at low, medium and fast flow rates and the average quantity as measured with the actual quantity of ten (10) liters. Dispensing pumps delivering less than the tolerable minimum quantity shall be deemed to be UNDERDELIVERING. The absence of an "OUT OF ORDER" sign or padlock locking the dispensing pump shall be deemed an actual use of the pump for the conduct of retailing. A dispensing pump found with a broken or no seal shall constitute a prima facie evidence of UNDERDELIVERING.

Section 3I.03. Penalty/Sanction Against ILLEGAL TRADING or UNDERDELIVERING.- Any person engaged in the business of Retailing Liquid Petroleum Products who commits illegal Trading and/or Underdelivering shall be subject to the following penalties:

FIRST OFFENSE - fine of Five Thousand Pesos (P5,000.00)

SECOND OFFENSE & SUCCEEDING OFFENSES - fine of Five Thousand Pesos (5,000.00) and revocation of permit to operate business and permanent closure of business.

Section 3I.04. Imposition of Fees. - The following are hereby levied for the registration sealing and calibrating of every dispensing pump:

Registration	P75.00/nozzle
Sealing and Tagging	P125.00/nozzle

ARTICLE J

Permit Fee on Film-Making and Video Tape Coverage

Section 3J.01. Imposition of Fee. There shall be collected the following permit fee from any person who shall go on location-filming within the territorial jurisdiction of this municipality.

	Rate of Fee/Filming
Commercial movies	P500.00/film
Commercial/ Advertisements	300.00/film
Documentary film	200.00/film
Video coverage	150.00/coverage

In case of extension of filming time, the additional amount required must be paid prior to extension to filming time.

Section 3J.02. Time of Payment. The fee imposed herein shall be paid to the Municipal Treasurer upon application for the Mayor's Permit seven (7) days before location-filming is commenced.

ARTICLE K

Permit Fee for Agricultural Machinery and Other Heavy Equipment

Section 3K.01. Imposition of Fees. There shall be collected an annual permit fee at the following rates for every agricultural machinery or heavy equipment from non-resident operators of said machinery, or equipment renting out said machinery/equipment in this municipality:

	Rate of fee per annum
a. Handtractors	250.00
b. Light Tractor	300.00
c. Heavy Tractor	350.00
d. Bulldozers	1,500.00
e. Forklift	350.00
f. Heavy Grader	600.00
g. Light Grader	600.00
h. Mechanized Treshers	350.00
i. Manual Treshers	150.00
j. Cargo Truck	350.00
k. Dump Truck	350.00
l. Road Rollers	350.00
m. Payloader	350.00
n. Primemovers/Flatbeds	350.00
o. Backhoe	600.00
p. Rockcrusher	600.00
q. Batching Plant	500.00
r. Transit/Mixer Truck	600.00
s. Crane	350.00
t. Other agricultural machinery or heavy equipment not enumerated above.	
t.1 Four-wheel Drive Rice farm Tractor	500.00
t.2 Combine Rice harvester	500.00

Section 3K.02. Time and Manner of Payment. The fee imposed herein shall be payable prior to the rental of the equipment upon application for a Mayors permit.

Section 3K.03. Administrative Provisions. The Municipal Treasurer shall keep a registry of all heavy equipment and agricultural machinery, which shall include the make and brand of the heavy equipment and agricultural machinery and name and address of the owner.

Section 3K.04. Penalty. Any violation of the provisions of this article shall be punished by a fine of not less than Five Hundred Pesos (500.00) but not exceeding One Thousand Peso (1,000.00) or imprisonment of not less than one (1) month but not exceeding six months, or both, at the discretion of the court.

ARTICLE L FEES ON TRICYCLE OPERATION

Section 3L.01. Scope Application. This article shall apply to all motorized tricycle for hire within the territorial limits or jurisdiction of the municipality of Ipil, Zamboanga Sibugay.

Section 3L.02. Definition of terms. As used herein, the following terms shall mean:

- a. **Colorum-** refers to Tricycle Operators/Drivers who operate clandestinely without permit within the municipality and/or private vehicle operated for public utility purposes without the benefit of a valid and existing special permit, provisional authority or franchise.
- b. **Franchise-** refers to a special privilege conferred by the Local Government to an individual or corporation which does not belong to the citizens by common right. It is a nature of a private contract between the Local Government and an individual or corporation which cannot be amended by implication. It is further a privilege granted to qualified person who desires to provide transport service to the general public by means of motorized tricycle for monetary consideration.

- c. **Motorized Tricycle for hire**- a motor vehicle composed of a motorcycle fitted to a single-wheeled sidecar, or with a center cab operated to render transport services to the general public for fee.
- d. **Motorized Tricycle Operators Permit (MTOP)**- the document granting permit to operate issued to a person, natural or juridical, allowing such person to operate motorized tricycle for hire within the Municipality of Ipil.
- e. **Request for System Update (RSU)**- is a document form the Land Transportation Office (LTO) showing that the applicant has applied for a change of status of his Tricycle unit from "PRIVATE" to "FOR HIRE".
- f. **Road Worthiness**- the quality of being fit to drive on the open road
- g. **Tariff**- the schedule of fare rate issued by the Local Motorized Tricycle Regulatory Board (MTRB) as approved by the Sangguniang Bayan.
- h. **Traffic Citation**- is a summon or citation in writing issued to a person violating any of the provision herein or traffic ordinances and regulations of the municipality.

Section 3L.03. Motorized Tricycle Regulatory Board. The composition of the Motorized Tricycle Regulatory Board (MTRB) shall be the following with its powers and authority

a. **COMPOSITION:**

Chairman	- Municipal Mayor
Vice Chairman	- Chairman, Committee on Public Utilities & Transportation
Member	- Chairman of the Committee on Ways and Means
Member	- Chairman of the Committee on Public Safety
Member	- Municipal Licensing Officer
Member	- ABC Federated President
Member	- Licensing Office Records Officer
Member	- Head, MITSOM
Member	- PNP Chief

b. **POWER AND AUTHORITY :** The Motorized Tricycle Regulatory Board shall have the following powers and authority:

b.1 Issue, amend, revise, suspend or cancel Motorized Tricycle Operators Permit (MTOP) and prescribe the appropriate terms and conditions thereof.

b.2 Prescribed and regulate zones or service areas in coordination with the Sangguniang Bayan of the areas affected.

b.3 Establish and prescribe the conditions and qualification of service.

b.4 Recommend to the Sangguniang Bayan the readjustment of the fares or rates for the services for the different zones, as well as, the fees and other related regulatory fees and charges in connection with the operation of motorized tricycle for hire.

b.5 Perform such other powers and authority that the Sangguniang Bayan may grant unto it.

b.6 Creation of Task Force and guidelines.

Section 3L.04. GRANTING A MTOP. All tricycle operators/drivers routing within the municipality of Ipil are required to secure a Municipal Tricycle Operator's Permit at the Municipal Licensing Office. This permit must be renewed annually on or before January 20.

a. Only one applicant/franchise per family. Effective January 2022, all old multiple franchise shall be surrendered at the Municipal Licensing Office.

b. Applicants for a Motorized tricycle franchise should present the following documents:

1. Community Tax Certificate
2. Voter's ID duly registered in Ipil, Zamboanga Sibugay
3. LTO Certificate of Registration of the Motorcycle with the latest LTO Official Receipt of Registration payment issued in the name of the applicant.

c. All operators and drivers who wish to apply for new or renew Motorized Tricycle Permit are required to attend the orientation seminar to be determined and scheduled by the MTRB with the Municipal Licensing Section.

d. The orientation or re-orientation seminar is purposely to instill the welfare of the operators and drivers to inform the requirements, municipal Traffic Code, Motorized Tricycle Ordinance, RA 4136 (Land Transportation and Traffic Code of the Philippines), and conditions granting a Franchise.

e. Membership from the Ipil Tricycle Operators and Drivers Association.

The operator's permit shall be issued/renewed automatically, provided that he has completed the requirements.

Section 3L.05. Fees and Rates of MTOP.

	Motorcycle fitted to a single wheeled car	Motorcycle with two wheeled cab
MTOP Fee	620.00	920.00
Supervision/Inspection fee	150.00	150.00
Parking Fee	600.00	600.00
Occupational Calling ID	75.00	75.00
ID Lamination Fee	25.00	25.00
MTOP Lamination Fee	30.00	30.00
Total Amount	P1,500.00	P1,800.00

Garage Franchising – P 100.00/month

Section 3L.06. Approval and Renewal of MTOP.

Within 30 days from the approval of the application, the franchise must convert the registration of his New Motorcycle unit from PRIVATE to FOR HIRE to be able to secure the appropriate Number Plate for the operation.

Section 3L.07. Body Number, Color and Markings – Aside from the yellow LTO registered plate, a Tricycle shall bear the following markings/signs:

- a.) Assigned MTOP body number, painted boldly at the front, rear view and inside the tricycle in the dark blue (5x3 inches) and white background (7x16 inches)
- b.) Name of franchise holder/operator, printed in full under the body number front and rear side of the bicycle for hire (3 inches in bold letters).
- c.) Schedule of the Day-Off shall be printed boldly above the body.

Section 3L.08. Suspension or Stoppage of Service – An operator who wishes to stop service completely or to suspend service for more than one month, should report in writing such termination or suspension to the office herein called the Municipal Tricycle Franchising and Regulatory Board.

Section 3L.09. Non-Transferability of MTOP. The MTOP is issued on the basis of the personal character and qualification of the applicant. Hence, the MTOP is non-transferable and non-negotiable. In case of death of the owner, transfer to direct family is hereby allowed (spouse or children with single status of legal age).

Section 3L.10. Number Coding Scheme or Day Off. To regulate the operation of tricycle for hire in the municipality of Ipil, a number coding scheme or day off of one day in every week for this mode of transportation shall be implemented in order to ease traffic congestion. Day off will be based on the last digit of the MTRB case or body number.

Body Number Last Digit	Day Off
a.) 1 and 2	Monday
b.) 3 and 4	Tuesday
c.) 5 and 6	Wednesday
d.) 7 and 8	Thursday
e.) 9 and 10	Friday

Section 3L.11. Tricycle Fare. There shall be a tricycle fare of Ten Pesos (P10.00) per passenger for the first kilometer and an additional Two Pesos (P2.00) in every succeeding kilometer that shall be implemented right after multiple passenger is allowed thereof.

- a.) Baggage of every 25 kilograms shall be considered or equivalent to half fare and 50 kilograms shall be considered or equivalent to 1 passenger fare.
- b.) Senior citizens, persons with disability (PWD) and students with valid ID shall be entitled to 20 percent discount.
- c.) Children below 7 years old shall be free of charge.

Section 3L.12. Alternative Route for Tricycles. All tricycles in the municipality of Ipil, Zamboanga Sibugay are strictly prohibited along Rotunda. (Effective February 1, 2021)

Section 3L.13. There shall be four (4) routes of tricycle/pedicabs operating in the municipality of Ipil, Zamboanga Sibugay. (Effective February 1, 2022).

- a.) Route A – within boundaries of Pagadian to Magdaup Road
- b.) Route B – within boundaries of Magdaup to Zamboanga Road
- c.) Route C – within boundaries of Zamboanga to Dipolog Road
- d.) Route D – within boundaries of Dipolog to Pagadian Road

Section 3L.14. Motorized Tricycle shall use the outmost right lane of the National Highway.

Section 3L.15. Recognized Association. There shall only be one Tricycle Drivers and Operators Association to be recognized by the MTRB. The only recognized association shall be the Ipil Tricycle Drivers and Operators Association (ITDOA).

Officers of the association represented by its president are welcome and authorized to relay/report any actions made within the association to the MTRB.

Section 3L.16. Other Prohibited Acts. The following acts are hereby prohibited:

a.) Refusal to Convey Passenger – Any driver who refuses or denies to convey any passenger to his/her destination or who is selective in soliciting or loading passengers, without justifiable cause, shall be subjected to a summary investigation by the MTRB, upon filing of complaint by the concerned passengers/s. For the purpose of this provision, justifiable cause shall mean emergency cases only.

Any tricycle driver or operator who does not wish to convey passengers at any given period during the day for reason known only to them, must place in the front windshield of his sidecar or motorcycle cab “PRIVATE USE” for information of the public.

b.) Not wearing proper attire and Identification Card (ID) – All drivers shall wear proper attire such as t-shirt, long pants and shoes. Wearing of sleeveless and slippers is strictly prohibited. Proper hygiene to include haircut and body odor shall strictly be observed.

All Motorized Tricycle for hire shall be required to display the driver's ID together with the laminated franchise inside the vehicle visible to the passenger (front side). Therefore, the operators shall inform directly the MTRB in case there is a change of authorized unit driver.

c.) Motorized Tricycle/Pedicab Load Limit – maximum of six (6) passengers including the driver.

d.) Over charging of Fare rate.

e.) Misconduct towards passenger.

f.) Driving under the influence of illegal drugs and liquor, gambling of any form whether they are games of chance or skills while parking.

g.) Smoking

Section 3L.17. Authorized Apprehending Officers. The following shall be the authorized apprehending officers: MTRB Task Force, PNP, MITSOM and other deputized traffic enforcers.

Section 3L.18. Penalty Clause. Any violation of any provision/s of this Ordinance shall be penalized of Administrative Fine, as follows:

First Offense	-	P1,000.00
Second Offense	-	P1,500.00
Third Offense	-	P2,500.00 Denial for renewal of application And Impoundment

Section 3L.19. Disposition of Fines. All fines/forfeitures collected for the violations of any provision of this article shall be paid to the Municipality through the Municipal Treasurer and deposited under the General Fund of the municipality.

Section 3L.20. Repealing Clause. All ordinances, as well as pertinent rules and regulations thereof which are inconsistent with the provisions of this article are hereby repealed or amended accordingly.

Section 3L.21. Separability Clause. If, for any reason or reasons, any part or provision of this article shall be held to be unconstitutional or invalid, other parts or provisions hereof which are not affected thereby shall continue to be in full force and effect.

ARTICLE M

Permit Fee on Occupation or Calling Not Requiring Government Examination

Section 3M.01. Imposition of Fee - There shall be collected as annual fee at the rate prescribed hereunder for the issuance of Mayor's Permit to every person who shall be engaged in the practice of the occupation or calling not requiring government examination with the municipality as follows:

Particulars	Fees
Actuary	100.00
All Vendors	100.00
Animal Trainer	100.00
Bandsaw/Chainsaw Operator	100.00
Bar Tender	100.00

Bar/Club/Disco/Voke/ Manager/ Supervisor	100.00
Barber/Hairstylist/Beautician	100.00
Basketball/ Volleyball/ Boxing/ and Other Sports Referee/ Official	100.00
Bingo Caller	100.00
Butcher	100.00
Call Center Agent	100.00
Carpenter/Mason/ Painter	100.00
Chiropodist	100.00
Cinema Projector Operator	100.00
Commercial Steward/Stewardess	100.00
Construction Foreman/ Supervisor	100.00
Cook/ Baker	100.00
Couturier	100.00
Dance/Gym/ Sports Instructor	100.00
Disc Jockey	100.00
Dispatcher/ Porter	100.00
Dressmaker/ Tailor	100.00
Driver/Inspector/Conductor of Passenger and Cargo Vehicles	100.00
Driving/Diving/Swimming Instructor	100.00
Electrician (Non PRC)	100.00
Electronic Technician	100.00
Embalmer	100.00
GRO/Hospitality Girl/Hostess/Club Dancer	100.00
Handyman	100.00
Hollow Block Maker	100.00
Host/ Hostess	100.00
Insurance Agents and Sub Agent	100.00
Janitor/ Janitress	100.00
Jewelry Appraiser	100.00
Laborer	100.00
Lathe Machine Operator	100.00
Marine Surveyor	100.00
Massage Attendant/ Masseur	100.00
Mechanic	100.00
Medical/Dental Aid/Attendant	100.00
Medical/Dental Sales Representative	100.00
Merchandiser/Promo girl	100.00
Non-PRC Passer Teacher/Instructor	100.00
Packer	100.00
Photographer	100.00
Pilot	100.00
Plumber	100.00
Professional Artist	100.00
Professional Boxer/ Ring Announcer	100.00
Radio/ Telecom Operator	100.00
Real Estate Broker	100.00
Receptionist	100.00
Reflexologist	100.00
Salesgirl/salesboy	100.00
Security Guard/ Watchman	100.00
Shoe Shine Boy	100.00
Shoe/ Bag Repairman	100.00
Singer/ Band Member	100.00
Sports Promoter	100.00

Statistician	100.00
Stevedoring Worker	100.00
Stock Broker	100.00
Sugar Technologist	100.00
Tattooer	100.00
Waiter/ Waitress	100.00
Watch/ Jewelry Repairman	100.00
Welder/ Body Builder	100.00
Personnel Under Recruitment Agencies	100.00
Others not specified above	100.00

Section 3M.02. Exemption. All professionals who are subject to the Provincial Tax imposition pursuant to Section 139 of the Local Government Code; and government employees are exempted from payment of this fee.

Section 3M.03. Person Governed. The following workers or employees whether working on temporary or permanent basis, shall secure the individual Mayor's Permit and LGU –Ipil Calling ID prescribed herewith;

(a) Employees or workers in generally considered offensive and dangerous business establishment such as but not limited to the following:

1. Employees or workers in industrial or manufacturing establishment such as: Aerated water and soft drink factories; air rifle and pellets manufacturing; battery charging shops, blacksmith; breweries; candy and confectionery factories; canning factories; coffee cocoa and tea factories; cosmetics and toiletries factories; cigar and cigarette factories; construction and/ or repair shops of motor vehicles; carpentry shop; drug manufacturing; distillers, edible oil or lard factories; electric bulbs or neon lights factories; electric plant, electronics manufacturing; oxidizing plants; food and flour mills; fish curing and drying shops; footwear factories, foundry shops; furniture manufacturing; garments manufacturing, general building and other construction jobs during the period of construction; glass and glassware factories; handicraft manufacturing; hollow block and tile factories; Ice plants; milk, ice cream and other allied products factories; metal closure manufacturing; iron steel plants; leather and leatherette factories; machine shop, match factories, paints and allied products manufacturing; plastic products factories, perfume factories; plating establishment; pharmaceutical laboratories, repair shops of whatever kind and nature; rope and twine factories; sash factories; smelting plants; tanneries; textile and knitting mills; upholstery shops; vulcanizing shops and welding shops.
2. Employees and workers in commercial establishments cinematography film storage; cold storage's or refrigerating plants; delivery and messengerial services; elevator and escalator services; funeral parlors; janitorial services; junk shop; hardware; pest control services; printing and publishing houses; service station; slaughter- houses; textile stores; warehouses; and parking lots.
3. Employees and workers on other industrial and manufacturing firms or commercial establishments who are normally exposed to excessive heat, light, noise, cold and other environmental factors which endanger their physical and health well- being.
4. Employees and workers in commercial establishment who generally enter or attend to the daily needs of the general public such as but not limited to the following: Employees and workers in drugstores;
5. department stores; groceries supermarkets; beauty salons; tailor shops; dress shop; bank teller; receptionist, receiving clerk in paying outlets of public utilities corporation, except transportation companies; and other commercial establishment

whose employees and workers attend to the daily needs of the inquiring or paying public.

(b) Employees and workers in food or eatery establishments such as but not limited to the following:

1. Employees and workers in canteen, carindaria, catering services, bakeries, ice cream or ice milk factories, refreshment parlor, restaurants, sari-sari stores, and soda fountains;
2. Stallholders, employees and workers in public markets;
3. Peddlers of cook or uncooked foods;
4. All other food peddlers, including peddlers of seasonal merchandise.

(c) Employees or workers in night or night and day establishments such as but not limited to the following:

Workers or employees in bars; boxing stadium; bowling alleys; billiards and pool halls; cinema houses; cabarets and dance halls; cocktail lounges; circuses; carnivals and the like; day clubs and night clubs; golf clubs; massage clinics, sauna baths or similar establishments; hotels; motels; horse racing clubs; pelota courts; polo clubs; private detective or watchman security agencies; supper clubs and all other business establishment whose business activities are performed and consumed during night time.

In cases of night and day clubs, night clubs, day clubs, cocktail lounges, bars, cabarets, sauna bath houses and other similar places of amusements, they shall under no circumstances allow hostesses, waitress, waiters, entertainers or hospitality girl below 18 years of age to work as such. For those who shall secure the Individual Mayor's Permit on their 18th birth year, they shall present their respective baptismal or birth certificate duly issued by the local civil registrar concerned.

(d) All other employees and persons who exercise their profession, occupation or calling within the jurisdiction limits of the Municipality aside from those already specifically mentioned in Section 108.

Section 3M.04. Time and Manner of Payment. Fees prescribed in this Article shall be paid to the Municipal Treasurer this municipality upon filing of the application for the first time and annually thereafter within the first twenty (20) days of January thereafter. The permit fee is payable for every separate or distinct occupation or calling engaged in. Employer shall advance the fees to the Municipality for its employees.

LGU Calling ID shall be secured from the Licensing Office after the approval of the Mayor's Permit with the corresponding amount of Twenty- Five Pesos (25.00) valid for one (1) year and shall be paid at the Municipal Treasurer.

Section 3M.05. Surcharge for Late Payment. Failure to pay the fee prescribed in this Article within the time prescribed shall subject a taxpayer to a surcharge of Twenty-five percent (25%) of the original amount of late payment and a penalty of 2% monthly but not exceed 36 months.

In case of change of ownership of the business as well as the location thereof from one municipality to another, it shall be the duty of the new owner, agent or manager of such business to secure a new permit as required in this Article and pay the corresponding permit fee as though it were new business. Newly hired workers and/or employees shall secure their individual Mayor's Permit from the moment they are actually accepted by the management of any business or industrial establishment to starts working.

The individual Mayor's Permit so secured shall be renewed during the respective birth month of the permittee next following calendar.

Section 3M.06. Administrative Provisions.

a. The Business Permit and Licensing Office shall keep a record of persons engaged in occupation and/or calling not requiring government examination and the corresponding payment of fees required under personal data for reference purpose.

b. Persons engaged in the above mentioned occupation or calling with valid Mayor's Permit shall be required to surrender such permit and the corresponding Official Receipt for the payment of fees to the Municipal Treasurer and to the Municipal Mayor respectively for cancellation upon retirement or cessation of the practice of the said occupation or calling.

ARTICLE N

Building Permit

Section 3N.01. No person, firm or corporation, including any agency or instrumentality of the government shall erect, construct, alter, repair, move, convert or demolish any building or structure or cause the same to be done without first obtaining a building permit therefore from the Building Official of this municipality.

Section 3N.02. Imposition of Fee. There shall be collected from each applicant for a building permit fees pursuant to Department Order 155, Series of 1992, dated September 25, 1992, of the Department of Public Works and Highways.

Responsibilities of the Building Official:

Every Building Official shall keep a permanent record and accurate account of all fees and other charges fixed and authorized to be collected under this Rule.

FOR OCCUPANCY (Municipalities 50% or above rate)

Section 3N.03. Time and Payment. The fees specified under this article shall be paid to the Municipal Treasurer upon application for a building permit from the Municipal Building Official.

Section 3N.04. Accrual of Proceeds. The proceeds from building permit fees shall accrue to the general fund of this municipality.

Section 3N.05. Administrative Provisions. The application for a building permit shall be in writing and on the prescribed form with the Office of the Building Official. Every application shall provide at least the following information:

1. Description of the work to be covered by the permit applied for;
2. Description and ownership of the lot on which the proposed work is to be done as evidenced by TCT and / or copy of the contract of lease over the lot if applicant is not the registered owner;
3. The use or occupancy for which the proposed work is intended;
4. Estimated cost of the proposed work.

To be submitted together with such application are at least five sets of corresponding plans and specifications prepared, signed and sealed by a duly licensed architect or civil engineer in case of architectural and structural plans, by a registered mechanical engineer in case of mechanical plans, by a registered electrical engineer in case of electrical plans and by a licensed sanitary engineer or master plumber in case of plumbing or sanitary installation plans except in those cases exempted or not required by the Building Official under the Building Code.

Building permit number shall be posted at the actual location of the building to be constructed or on the location of construction.

ARTICLE O

Annual Permit Fee for the Storage of Flammable and Combustible Materials

Section 3O.01. Imposition of Fee. There shall be collected an annual permit fee, for the storage of combustible materials at the rates as follows:

a. Storage of gasoline, diesel, fuel kerosene and similar products	Rate per Annum
500 to 2,000 liters	110.00
2,001 to 5,000 liters	220.00
5,001 to 20,000 liters	330.00
20,001 to 50,000 liters	550.00
50,0001 to 100,000 liters	1,100.00

b. Storage of cinematographic film	110.00
c. Storage of celluloid	110.00
d. Storage of calcium carbide	
1. Less than 50 cases	55.00
2. 50 to 99 cases	110.00
3. 100 or more cases	165.00
e. Storage of tar, resin and similar materials	
1. Less than 1,000 kls.	110.00
2. 1,000 to 2,500 kls.	220.00
3. 2,500 to 5,000 kls.	330.00
4. Over 5,000 kls.	550.00
F Storage of coal deposits	
1. Below 100 tons	110.00
2. 100 tons or above	220.00
G Substance not mentioned above	550.00

Section 3O.02. Time of Payment. The fees imposed in this Article shall be paid to the Municipal Treasurer upon application with the Office of the Municipal Mayor for permit to store the aforementioned substances.

Section 3O.04. Administrative Provisions.

(a) No person shall keep or store at his place of business any of the following flammable, combustible or explosive substances without securing a permit therefore. Gasoline or naphtha not exceeding the quantity of One Hundred (100) gallons, kept in and used by launches or motor vehicles shall be exempt from the Permit fee herein required.

(b) The Mayor shall promulgate regulations for the proper storing of said substances and shall designate the proper official and shall supervise therefore.

ARTICLE P

Annual Inspection Fee on Internal Combustion Engines, Generators, other Machineries and Engines

Section 3P.01. Imposition of Fee. There shall be imposed an Annual Inspection Fee on internal combustion engines generators and other machines in accordance with the following schedules:

(a) Internal combustible engines:

PARTICULARS	Annual Inspection Fee
1. 2 HP and below	50.00
2. 5 HP and below but not lower than 3 HP	100.00
3. 10 HP and below but not lower than 5 HP	150.00
4. 14 HP and below but not lower than 10 HP	150.00
5. Above 15 HP	200.00

(b) Other stationery engines or machines :

PARTICULARS	Annual Inspection Fee
1. 3 HP and below	50.00
2. 5 HP and below but not lower than 3 HP	100.00
3. 10 HP and below but not lower than 5 HP	150.00
4. 14 HP and below but not lower than 10 HP	150.00
5. Above 14 HP	200.00

Electrical generators and other machine propelled by electric motors will be levied the same rates found in subsection (a).

Section 3P.02. Time of Payment. The annual fee imposed in this Article shall be paid to the Municipal Treasurer upon application of the Permit with the Office of the Municipal Mayor but not later than fifteen (15) days after the actual inspection by person authorized in writing by the Mayor. Thereafter, the fee shall be paid within the first twenty (20) days of January.

Section 3P.03. Administrative Provision. No engine or machine mentioned above shall be installed or operated within the territorial limits of this municipality, without the permit of the Municipal Mayor and the payment of the inspection fee prescribed in this Article.

ARTICLE Q

Zoning/Locational Clearance Fee

Section 3Q.01. Imposition of Fee. There shall be collected Zonal/Locational Clearance Fees at current rates and in accordance with the applicable rules and regulations prescribed by the **Department of Human Settlements and Urban Development (DHSUD)**.

Section 3Q.02. Accrual of Proceeds. The proceeds from Zoning/Locational and related fees shall accrue to the general fund of this municipality.

Section 3Q.03. Administrative Provisions. It shall be the duty of the Zoning Administrator or the duly designated local official to secure annually from HLURB pertinent rules and regulations required to implement this Article and to obtain the revised schedule of fees as soon as they are promulgated and become effective.

ARTICLE R

Permit Fee for Temporary Use of Roads, Streets, Sidewalks , Alleys, Patios, Plazas and Playgrounds

Section 3R.01. Imposition of Fee. Any person that shall temporarily use and/or occupy a road, street, sidewalk, alley, patio, plaza, playground or portion thereof in this municipality in connection with construction works and/or other purposes, shall first secure a permit from the Mayor and pay a fee according to the following schedule:

Permit	Fee
1. For construction	20.00 /sq.m. per week or fraction thereof
2. For others	5.00 /sq. m. per day

For wake and other charitable, religious and educational purposes, use and/or occupancy no fee shall be collected: Provided, that a corresponding permit is first secured from the Office of the Municipal Mayor.

Section 3R.02. Time of Payment. The fee shall be paid to the Municipal Treasurer upon filing of the application for permit with the Municipal Mayor.

Section 3R.03. Administrative Provisions. The period of occupancy and/or use of the street, sidewalk, or alley or portion thereof shall commence from the time the construction permit is issued and shall terminate only upon the issuance of the certificate of building occupancy. The Municipal Engineer shall report to the Municipal Treasurer the area occupied for purposes of collecting the fee.

ARTICLE 5

Permit Fee for the Conduct of Group Activities

Section 3S.01. Imposition of Fee. Every person who shall conduct, or hold any program, or activity involving the grouping of people within the jurisdiction of this municipality shall obtain a Mayor's Permit therefore for every occasion of not more than twenty-four (24) hours and pay the Municipal Treasurer the corresponding fee in the following schedule:

	Permit Fee
1. Conference, meetings, rallies and demonstration in outdoor, in parks, plazas, roads/streets, Dances, Coronation and ball & Other group activities	
Number of participants;	
10 to 50	300.00
51 but less than 100	500.00
More than 100	1,000.00
2. Promotional sales	500.00

Section 3S.02. Time of Payment. The fee imposed in this article shall be paid to the Municipal Treasurer upon filing of application for permit with the Municipal Mayor.

Section 3S.03. Exemption. Programs or activities conducted by educational, charitable, religious and governmental institutions free to the public shall be exempted from the payment of the fee herein imposed, provided, that the corresponding Mayor's Permit shall be secured accordingly. Programs or activities requiring admission fees for attendance shall be subject to the fees herein imposed even if they are conducted by exempt entities.

Section 3S.04. Administrative Provision. A copy of every permit issued by the Municipal Mayor shall be furnished to the Chief of Police or Station Commander of the Philippine National Police (PNP) of the municipality who shall assign police officers to the venue of the program or activity to help maintain peace and order.

ARTICLE T
Inspection Fee for every Electrical, Cable and Telephone Post used in the Municipality of Ipil, Sibugay Province.

Section 3T.01. Imposition of Fees: There shall be collected an annual fee for every electrical, cable and telephone post in the Municipality of Ipil at the rate of P 50.00 per annum.

The Office of the Municipal Engineer shall prepare an updated annual inventory of all electrical, cable and telephone post in the Municipality of Ipil.

Fees shall be paid to the Municipal Treasurer or his duly authorized representative.

ARTICLE U
Registration of Barangay Micro Business Enterprise

Section 3U.01. Qualification. Any business entity or enterprises engaged in the production, processing or manufacturing of products or commodities, including agro-processing, trading and services, whose commodities including those arising from loans but exclusive of the land on which the particular business entity's office, plant and equipment are situated shall not be more than P 3 Million.

Section 3U.02. Registration and Operation of BMBEs. The Office of the Municipal Treasurer shall register the BMBE to avail the benefits under this R.A. 9178.

Application will be processed within 15 working days, upon submission of complete documents. LGU may charge a fee not exceeding one thousand pesos (1,000). The Certificate of Authority shall be effective for a period of two (2) years for every renewal.

ARTICLE V
Permit Fee on Firing Range

Section 3V.01. Imposition of Fees. An Annual Permit Fee shall be imposed on every person or entity who will establish, operate and maintain a firing range within the territorial jurisdiction of Ipil at the following rates:

Particulars	Fees
1-5 Firing Range	1,500.00
6-10 Firing Range	3,000.00
More than 10 Firing Range	5,000.00

Section 3V.02. Administrative Provisions.

a. The pre-requisite of law should be strictly complied with before a permit shall be issued.

b. A regular inspection will be conducted by the Office of the Municipal Mayor to ensure that public safety is strictly observed.

Section 3V.03. Time of Payment. The annual fees imposed shall be paid to the Municipal Treasurer and renewable on or before the prescribed period.

ARTICLE W
Permit Fee for Air Gun Owners

Section 3W.01. Imposition of Fee. An Annual Permit Fee shall be collected from all air gun owners at the following rates:

Particulars	Permit Fee (in Php)
Registration/ Renewal	200.00

Section 3W.02. Administrative Provision. Possession and/or use of non-registered Air guns shall be subject to confiscation and may only be returned upon payment of the of the fine of Three Hundred Pesos (300.00) in addition to the annual registration fee.

ARTICLE X

Annual Permit Fee for Conveyance or transportation of Any Explosive or Hazardous Inflammable Liquid.

Section 3X.01. Permit. It shall be unlawful for any person, firm or corporation To convey or transport any explosive or hazardous inflammable liquid within the municipality limits of the Municipality of Ipil, in any truck, tank trailer, vessel, boat orcraft or any motor vehicle without first having obtained a permit from the Municipal Mayor for the said conveyance, upon recommendation by the Chief of the Local Fire Service.

Section 3X.02. Imposition of Fees. An annual Permit Fee for conveyance of transportation of any explosive or hazardous inflammable liquid within the territorial limits of Ipil as follows:

Particulars	Fees (in Php)
Cargo trucks with a payload capacity of 20-50 gals/drums or equivalent	200.00
Over 50 gallons/ drums or equivalent	300.00
Tank trucks, tank trailer and semi-Tank trailers having a capacity of: 6,000 liters or less	200.00
Over 6,000 liters	300.00
Self-propelled or non-propelled package	200.00
Self-propelled or non-self-propelled bulk craft	300.00

Provided, that no fuel for consumption, conveyance, storage tanks deposited on the conveyance, up to (50) gallons, shall be permitted without securing permit or paying the above fees. Provided, further that the government of the Republic of the Philippines and / or may of its political subdivisions, the United States Army and Navy, United Embassy and members of its staff, diplomatic and consular representatives and officers of foreign governments are hereby exempted from the imposition of the fees mentioned herein.

ARTICLE Y

ENGINEERING INSPECTION FEE

Section 3Y.01.Imposition of Fees. There shall be collected a fee for every inspection conducted by the Engineering Department/Office:

Particulars	Fees (in Php)
Engineering Inspection	350.00

ARTICLE Z

Section 3Z.01. All Other Permits and Regulatory Fees not mentioned in this Chapter

	Permit Fee
Micro-Industries	300.00
Cottage Industries	500.00
Small Scale Industries	1,000.00
Medium Scale Industries	1,500.00
Large Scale Industries	2,000.00

CHAPTER IV SERVICE FEES

Article A Secretary's Fees

Section 4A.01. Imposition of Fees. There shall be collected the following fees from every person requesting for copies of official records and documents from the offices of this municipality.

	Amount of Fee
a.) For every page or fraction thereof typewritten (not including the certificate and notation)	P 150.00
b.) For each certificate of correctness (with seal of office) written on the copy or attached thereto	P 200.00
c.) For certifying the official act of the Municipal Judge or other judicial certificate with seal	P 200.00
d.) For certified copies of any papers, records, decrees, judgement or entry of which any person is entitled to demand and receive a copy(in connection with judicial proceedings) for each page	P 200.00
e.) True copy, photocopy or any other copy produced by copying machine per page	P 50.00
f.) Filing fee for Administrative Cases (Legislative Department/ Office)	P 200.00
g.) PLEB Clearance	
Loan	P 100.00
Studies and Promotions	P 250.00

Section 4A.02. Exemption. The fees imposed in this Article shall not be collected for copies furnished to other offices and branches of the government for official business, except for those copies required by the Court at the request of the litigant, in which case, charges shall be in accordance with the above-mentioned schedule.

Section 4A.03. Time and Manner of Payment. The fees shall be paid to the Municipal Treasurer at the time of the request, written or otherwise, for the issuance of a copy of any municipal record or document is made.

ARTICLE B Local Civil Registry Fees

Section 4B.01. Imposition of Fees. There shall be collected a fee for the following services rendered by the Municipal Civil Registrar of this municipality.

Marriage Fees:	Amount of Fee
1. Application for marriage license	
a. For application when applicants are residents of the municipality	P 800.00
b. For application when applicants are non-resident	P 800.00
c. For application when one of the applicants is a foreigner	P 800.00
d. For Marriage under article 34	EXEMPTED
2. Marriage license fee	P 2.00
3. Marriage solemnization fee	P 250.00
For Registration of Court Decrees / Orders:	
1. Adoption	P 700.00
2. Annulment of marriage/Legal separation/Declaration of Presumptive death	P 700.00
3. Naturalization	P 1,500.00
4. Change of Name & Correction of Entries	P 700.00
5. Other Court decrees/ orders	P 700.00
For Registration of Legal Instruments:	
1. Legitimation / Admission of Paternity	P 100.00
2. Other Legal Instruments	P 100.00
For Issuance of Certified True Copies and Certified Transcripts in Duplicate Copy:	
1. Live Births (Form 1A)	P 100.00
2. Deaths (Form 2A)	P 100.00
3. Marriage (Form 3A)	P 100.00
Service Fee:	
1. Processing for documents	P 150.00
2. BREQS Service Fee	P 100.00
3. MCR Certification Fee	P 50.00

An application fee of one hundred pesos (100.00) shall be collected in processing every document through Batch Request System (BREQS). Twenty Five Pesos (25.00) from it will be deposited in the Trust Fund intended for the travelling expenses and the Seventy Five Pesos (75.00) to be deposited in General Fund.

Civil Registry services in connection with R.A. 9048. An Act authorizing the City/Municipal Civil Registrar or the Consul General to correct or type in an entry/or change of first name or nickname in the civil register without need or a judicial order, amending for this purposes article 376 and 412 of the Civil Code of the Philippines.

FILING FEES:

1. Payment for Correction of Clerical or Typographical Error	P1,000.00
2. Payment for change of First Name	P3,000.00
3. Payment for Correction of Gender, Month And Date of Birth	P3,000.00
3. For Migrant Petitions:	
3.a. Correction of Clerical or	

Typographical Error	P 500.00
3.b. Change of First Name	P1,000.00

All filling fee in connection with R.A. 9048 shall accrue to the LCRO Trust Fund, created for the purpose, subject to auditing and accounting rules, regulations and procedures.

Section 4B.02. Exemptions. The fee imposed in this Article shall not be collected in the following cases:

- a. Issuance of certified copies of documents for official use at the request of a competent court or other government agency, except those copies required by courts at the request of litigants, in which case the fee should be collected.
- b. Burial permit of a pauper, per recommendation of the Municipal Mayor.
- c. Indigent petitioner shall be exempted from the payment of filing fee of Clerical and Typographical error and/or Change of First Name or Nickname provided however that said petitioner is thorough determined by MSWD.

Section 4B.03. Time of Payment. The fees shall be paid to the Municipal Treasurer before registration or issuance of the permit, license or certified copy/certification of local civil registry records or documents.

Section 4B.04. Administrative Provision. A marriage license shall not be issued unless a certification is issued by the Family Planning Coordinating Council that the applicants have undergone lectures on family planning.

ARTICLE C Police Clearance Fee

Section 4C.01. Imposition Fee. There shall be paid for each police clearance certificate obtained from the Station Commander of the Philippine National Police of this municipality the following fees.

Amount of Fee

- | | |
|--|---------|
| 1. For employment, scholarship, study grant,
And other purposes not hereunder specified | P 50.00 |
| 2. For change of name | P100.00 |
| 3. For application for Filipino citizenship | P500.00 |
| 4. For passport or visa application | P200.00 |
| 5. For firearms permit application | P100.00 |

Section 4C.02. Time of Payment. The service fee provided under this Article Shall be paid to the Municipal Treasurer upon application for police clearance certificate.

ARTICLE D Sanitary & Inspection Fees

Section 4D.01. Imposition of Fee. Every owner/ operator of business, industrial, commercial or agricultural establishments, accesoria, building or house for rent shall secure sanitary certificate or permit for the purpose of supervision and enforcement of existing rules and regulations on sanitation and safety of the public upon payment to the Municipal Treasurer of an annual fee in accordance with the following schedule:

- a) Financial institution such as banks, pawnshops, insurance companies, finance and other investment companies, dealers in securities and foreign exchange:

- | | |
|----------------|------------|
| 1. Main Office | Php 500.00 |
|----------------|------------|

2. Every branch office	Php 300.00
b) gasoline service and filling station	Php 500.00
c) private hospitals	Php 500.00
d) medical and dental clinics and animal hospital	Php 500.00
e) dwellings and other spaces for lease or rent	
1. Hotels, motels, apartments, pensions,	
With 50 to 99 rooms	Php 1,000.00
With 25 to 49 rooms	Php 700.00
With less than 25 rooms	Php 500.00
2. Apartments per door	Php 100.00
3. House for rent	Php 500.00
4. Dormitories, lodging/ boarding house	
with accommodation for:	
40 or more boarders or lodgers	Php 500.00
15 to 39 boarders or lodgers	Php 400.00
Less than 15 boarders/lodgers	Php 300.00
f) Private institutions or learning centers	Php 1,000.00
g) media facilities	Php 200.00
h) telegraph, teletype and wireless	
communication companies	Php 500.00
i) telephone, electric and power companies	
Main Office	Php 500.00
For every branch office	Php 300.00
j) Administration, display office and/or offices of	
professionals	Php 200.00
k.) Peddlers/Mobile Traders	Php 100.00
l) Lending investors	Php 300.00
m) all other business, industrial, commercial,	
industrial and agricultural establishments	
not specifically mentioned above:	
With an area of 1,000 sq.m. or more	Php 1,000.00
500 or more but less than 1,000sq.m.	Php 700.00
200 or more but less than 500 sq.m.	Php 600.00
100 or more but less than 200sq.m.	Php 500.00
50 or more but less than 100 sq.m.	Php 400.00
25 or more but less than 50 sq.m.	Php 300.00
Less than 25 sq. meters	Php 200.00
n) Manufacturers, producers, for shops, laboratories,	
talipapas and warehouse	Php 1,000.00
o) Amusements places such as theaters, coliseum,	
sauna, bath, massage clinics, operators of golf	
links, cockpit arena, bowling alley, stadiums	Php 1,000.00
p) other amusement places not mentioned above	Php 500.00
q) importer, exporter and wholesaler	Php 1,000.00

Section 4D.02. Time of Payment. The fees imposed in this Article shall be paid to the Municipal Treasurer upon filing of the application for the sanitary inspection certificate with the Municipal Health Officer and upon renewal of the same every year thereafter within the first twenty (20) days of January.

Section 4D.03. Administrative Provisions.

a. The Municipal Health Officer or his duly authorized representative shall conduct an annual inspection of all establishments and buildings, and accessories and houses for rent, in order to determine their adequacy of ventilation, general sanitary conditions and propriety for habitation.

b. The Municipal Health Officer shall require evidence of payment of the fee imposed herein before he issues the sanitary inspection certificate.

ARTICLE E

Fees for Health Services

Section 4E.01. Imposition of Fee. There shall be collected fees for services of the municipal health office for the following:

a. Health Examination (consultation)	Php	50.00
b. Medical Certificate		
Employment	Php	100.00
Students	Php	50.00
For fidelity bond	Php	100.00
Insurance	Php	100.00
Additional Copy	Php	20.00/copy
c. Other Certification		
Employment	Php	100.00
Students	Php	50.00
Additional Copy	Php	20.00/copy
d. Authentication of Documents	Php	30.00
e. Replacement of Lost Cards/Certification	Php	50.00
f. Wound Dressing		
Small	Php	25.00
Medium	Php	50.00
Large	Php	75.00
g. Suturing		
Small	Php	50.00
Medium	Php	100.00
Large	Php	150.00
h. Circumcision	Php	150.00
i. Tooth Extraction	Php	150.00/tooth
j. Laboratory Examination:		
1. Fasting Blood Sugar	Php	90.00
2. Complete Blood Count	Php	100.00
3. Hemoglobin Determination	Php	75.00
4. Bleeding/Clotting Time	Php	50.00
5. Thrombocyte Count	Php	50.00
6. Malarial Smear	Free	
7. Stool Examination	Php	50.00
8. Clinical Microscopy	Php	50.00
9. Pregnancy Test	Php	100.00
10. Blood Typing	Php	50.00
11. Gram Staining	Php	150.00
12. Pap Smear	Php	150.00
13. Platelet	Php	100.00
14. Uric Acid Test	Php	100.00
15. Lipid Profile	Php	400.00
16. Delivery		
PRIMI	Php	1,000.00
MULTI	Php	700.00

Non Residents		
PRIMI	Php	3,000.00
MULTI	Php	2,000.00
New Born Screening	Php	1,750.00
New Born Screening Hearing	Php	250.00
k. Ultrasound		
Residents (non-philhealth/non-4Ps)	Php	250.00
Non-Residents	Php	400.00
VIA	Php	75.00

Section 4E.02. Time of Payment. The fee shall be paid to the Municipal Treasurer before health service is rendered and the medical certificate is issued in no case shall deposit be required in emergency cases requiring immediate attention.

Section 4E.03. Exemptions: All certified indigent patients are exempted from paying the fees provided for in this ordinance as long as the following requirements are submitted:

- a. Barangay certification of residency and indigent
- b. Certification of indigent from the Municipal Welfare and Development Office
- c. COMELEC Certification/Voter's ID

Section 4E.04. Administrative Provisions.

(a.) Individuals engaged in an occupation or working in the following establishments, are hereby required to undergo physical and medical examination before they can be employed and once every six months (6) thereafter.

- 1) Food establishments- establishments where food or drinks are manufactured, processed, stored, sold or served.
- 2) Public swimming or bathing places.
- 3) Dance schools, dance halls and nightclubs (including dance instructors, hostess, cooks, bartenders, waitresses, etc.)
- 4) Tonsorial and beauty establishments (including employees of barber shops, beauty parlors, hairdressing and manicuring establishments, exercise gym and figure slenderizing saloons, facial centers, aromatherapy establishments, etc.)
- 5) Massage clinics and sauna bath establishments (including masseurs, massage clinic/ sauna bath attendants, etc.
- 6) Hotels, motels and apartments, lodging, boarding, or tenement houses, and condominiums.

(b) Owners, managers or operators of the establishments shall see to it that their employees who are required to undergo physical and medical examinations have been issued the necessary medical certificates.

(c) The Municipal Health Officer shall keep a record of physical and other health examinations conducted, and the copies of medical certificates issued indicating the name of the applicant, the date and the purpose for which the examination was made.

Section 4E.05. Penalty. A fine of One Hundred Pesos (100.00) shall be paid by the owner, manager or operators of the establishments for each employee found to be without the necessary medical certificate.

ARTICLE F

Dog Vaccination Fee

Section 4F.01. Imposition Fee. Every dog three (3) months of age and older should be submitted by the owner for vaccination against rabies every year or as indicated on the label-literature of the

vaccine, but in no case should exceed 24 months young dogs shall be vaccinated within thirty (30) days after they have reached three months of and collection of fees:

- a.) Fee for new registration of One Hundred Pesos (100.00) to cover expenses of registration card and tag during Dog Mass Vaccination on the month of March every year.
- b.) A fee in the amount of One Hundred Fifty Pesos (150.00) to cover expenses for the vaccine, card and tag when pets (dog/cat) are vaccinated before and after the month of March. After March, vaccination of dogs/cats is done every Wednesday starting April of every year.

Section 4F.02. Penalty. Failure to abide any of the provisions shall be fined of the following:

- a.) Pet owners who fail or refuses to have their dogs registered or vaccinated against rabies shall be penalized on the:

First offense	-	P 500.00
Second offense	-	1,000.00
Third offense	-	1,500.00

- b.) Pet owners who refuses to have their dog/cat put under observation after it has bitten an individual shall be meted a fine of Two Thousand Pesos (P2,000.00).
- c.) Pet owners who refuses to shoulder the medical expenses of the person bitten by dog/cat shall be meted a fine of Two Thousand Five Hundred Pesos (P2,500.00).
- d.) Pet owners who do not leash their dog/cat when brought outside the house shall be meted a fine of Five Hundred Pesos (P500.00) for every incident.

Section 4F.03. Time of Payment. The fee shall be paid to the Municipal Treasurer prior to the vaccination. All revenues collected from the implementation of this ordinance shall be deposited to Trust Fund Account for the Rabies Control Program.

Section 4F.04. Sharing Scheme. All BLGU's in the Municipality of Ipil are required to adopt Ordinance Implementing the Rabies Control Program of the municipality (Ordinance No. 03-305-2012) in their respective barangays. Any barangay implements the ordinance shall be given 25% share of the revenues, the 75% will be remitted to the Municipal Treasurer's Office to be deposited to the Trust Fund Account.

ARTICLE G

Fee for Verification of Records

Section 4G.01. Imposition of Fee. There shall be collected for the following:

	<u>Rate of Fee</u>
1. Tax Clearance fee for real property and business taxes per document	P 150.00
2. For every additional sheet being requested	P 50.00
3. For request for verification of records	P 150.00
4. For request verification of records stored beyond 5 years	P 300.00
5. For request verification of records stored beyond 10 years	P 500.00

ARTICLE H

Assessors Service Fee

Section 4H.01. Imposition of Fees. There shall be collected a fee for the following:

1. Certificate True Copy of Tax Declaration	P100.00/ copy
2. Certificate of Aggregate Landholding	P75.00/ lot
3. Certificate of No Registered Property	P100.00/ cert.
4. Certificate of No Improvement	P100.00/ cert.
5. Certificate of Improvement	P100.00/ cert.
6. Service Fees on Transfer of Ownership of Real Property	NONE to 100.00/lot.
7. Issuance of Tax Declaration for Subdivision	P100.00/ lot
8. Real Property Assessment Verification Fee	P 150.00
9. Authentication Fee on Photocopy	P 150.00

ARTICLE I

Social Welfare Development Services

Section 4I.01.Imposition of Fees. There shall be collected a fee for the following:

Particulars	Fees
1. Certification	
Guardianship	P 50.00
Scholarship	P 50.00
Solo Parent	P 50.00
Correction of Name	P 50.00
PhilHealth Certification	P 50.00
2. Pre Marriage Orientation/Counseling	
Regular	P300.00
Special	P500.00
3. Petition for Adoption	P1,000.00

CHAPTER V

MUNICIPAL CHARGES

ARTICLE A

Rentals of Personal and Real Properties Owned by the Municipality

Section 5A.01.Imposition of Fees. The following rates of rental fees for the use of real and personal properties of this municipality shall be collected:

MONTHLY

- (1) Land Only (per sq. m)
 - (a) Located in commercial/industrial area P 10.00/ sq.m/month
 - (b) Located in residential area P 6.00/ sq.m/ month
- (2) Building (per sq. m of floor area)
 - (a) Located in residential area P 135.00/sq. m/month
 - (b) Others P 10.00/sq.m/month

(Note: For multi-storey structures rates can be categorized based on floor location as in ground floor, corner, etc. Specify if rental rates are annual, monthly, weekly or daily) Vehicles and Equipment Other Properties that may be acquired after the promulgation of this ordinance.

HEAVY EQUIPMENTS

RATE OF FEE

Grader

P1,500.00/hour

Backhoe	P1,500.00/hour
Backhoe (Small)	P1,200.00/hour
Road Roller	P1,500.00/hour
Payloader	P1,500.00/hour
Bulldozer (D7)	P5,000.00/hour
Boom Truck (6 Wheeler)	P1,000.00/hour
Self Loader	P1,200.00/hour
Ladder Fire Truck	P2,500.00/hour
Dump truck (6 wheeler)	P1,000.00/hour
Saddam Truck (6 wheeler)	
Isuzu SKW CARGO Truck (Planetary)	P1,000.00/hour
Other agricultural machinery or heavy equipment not enumerated above.	
Four-wheel Drive Rice farm Tractor	P750.00/ha/Passing
Combine Rice harvester	P2,000.00/ha/Passing
Gasoline/oil consumption not included	

VEHICLES

Ambulance:

		<u>Destination</u>	<u>Resident</u>	<u>Non-resident</u>
FROM				
Ipil	To	Titay	P 220.00	P 275.00
		Sindangan	P1,320.00	P1,540.00
		Dipolog City/Dapitan	P2,420.00	P2,500.00
		R.T. Lim/Naga	P 440.00	P 550.00
		Tungawan/Siay	P 770.00	P 990.00
		Vitali	P1,100.00	P1,320.00
		ZamboangaCity	P2,200.00	P2,530.00
		Pagadian City	P2,200.00	P2,530.00
		Iligan City	P4,400.00	P4,950.00
		Ozamis City	P3,850.00	P4,180.00

Section 5A.02. General Provision applicable to ambulance only.

1. The ambulance shall for emergency cases, be used to conduct /transport patients who need immediate medical treatment to their desired place/ hospital;

2. In the 3 of the general welfare, access to the Municipal Ambulance shall be at any time of the day to respond immediately to the call of the needing public upon approval of the Municipal Health Officer or his/her duly recognized representative;

3. In no case shall the ambulance be used for the purpose other than that are stipulated herein except in situation like Boys and Girls Scout activities, Athletic meets and other Health related activities upon the approval of the Chief Executive.

4. It is hereby provided that the municipal ambulance shall have an official driver who shall have compensation and other benefits as prescribed by the Civil Service Laws, Rules and regulations.

5. In no case shall the ambulance be parked outside the municipal ground / garage.

6. It is hereby provided that the municipal ambulance shall have capacity of only five (5) persons including the driver and patient three (3) company of the patients). However, excess may be granted upon the discretion of the Municipal Health Officer or his/her duly recognized representative.

7. In no case shall the ambulance be used without a prescribed adequate oxygen gadgets/ facilities (small tank) except in patients not requiring oxygen.

8. It is hereby provided that patients from Ipil will not be charged like those patients who are non-residents of the municipality.

Section 5A.03. Guidelines to be implemented in specific cases (for the use of ambulance).

a.) Special Privileges to Senior Citizens, LGU employees and indigents.

a. 1. A twenty percent (20%) discount shall be granted to and Senior Citizen patient, provided he/she is able to present the required documents verifying his / her status;

a.2. There shall be a fifty percent (50%) discount granted to all LGU employees and for their direct dependents namely: husband/ wife, children, father or mother;

a.3. Indigents duly authenticated by a certification from the Municipal Social Welfare and Development Officer shall be required to pay only the fuel charge per receipt.

b.) A client, in need of the ambulance is required to present to the Driver the official receipt of payment before the ambulance may be used except in cases where the Mayor directly orders the use of the ambulance in a Memorandum Order.

c.) The ambulance is strictly prohibited from transporting/conducting and/or delivering a cadaver. Conducting a patient from Ipil to any other point from eight o'clock at night to three o'clock in the morning is disallowed except in extreme cases to be determine by the Municipal Health Officer-in-charge;

d.) Other Implementing Provisions:

1. Assignment of temporary driver. In the event that the Official Driver is on leave, the LGU, thru the Mayor's Office shall assign a temporary driver to operate the ambulance.

2. Fees from out of town patients. In cases when the ambulance is hired to pick up a patient outside the municipality and to be conducted/delivered to any destination, an additional of fifty percent (50%) charge shall be imposed, except in cases when the patient has been diagnosed as terminal case with a certified document.

Section 5A.04. Operational Definition of Terms:

1. Fees and charges - an amount to be collected from the patients/relatives prior to the issuance if the trip ticket;

2. Official Driver - a person who is appointed by the Municipal Mayor in accordance with Civil Service Rules And Regulations and is a resident within Poblacion and is entitled to a travel allowance of TWO HUNDRED PESOS (200.00) per official day of travel;

3. Patient - any individual who is in the state of emergency that needs immediate medical attention/ treatment;

4. Resident - patient who is a bona fide resident of Ipil, Zamboanga

Sibugay;

5. Non-resident - patient who will avail the use of the ambulance but it is not a bonafide resident of Ipil, Zamboanga Sibugay

Section 5A.05. Time of Payment. The fees imposed herein shall be paid to the Municipal Treasurer or his duly authorized representative, before the use or occupancy of the property.

Section 5A.06. Penalties. Any person who violates this article shall upon conviction be fined in the amount of not more than TWO THOUSAND FIVE HUNDRED PESOS (P2,500.00) or an imprisonment of not less than one (1) month or both at the discretion of the court.

ARTICLE B
Solid Waste Management Fees

1. AMBULANT AND ITENIRANT AMUSEMENT OPERATORS

- | | |
|---|---------------|
| a. Circus, Carnivals, Merry go round, roller coaster, ferries wheel, swing, shooting gallery, or the like
per unit/month or fraction thereof | P300.00/month |
| b. Sports contest/exhibition per day | P450.00/day |

2. INSTITUTIONS (Schools, Offices, and similar uses)

- | | |
|----------------|--------------|
| a. Private | P3,600.00/yr |
| b. Public/GOCC | P2,400.00/yr |

3. LABORATORIES

- | | |
|---|--------------|
| a. Small (Household based) | P1,500.00/yr |
| b. Medium (With Floor area not more than 100 sq.m.) | P2,500.00/yr |
| c. Big (With floor area more than 100 sq.m.) | P3,000.00/yr |

4. HOSPITALS, MEDICAL CLINICS/CENTERS

- | | |
|--|--------------|
| a. Private | |
| 1. With Floor area not more than 100 sq.m. | P3,600.00/yr |
| 2. With floor area more than 100 sq.m.) | P4,500.00/yr |
| b. Public | P6,000.00/yr |

5. INDUSTRIAL ESTABLISHMENTS

a. Food Processing (bakery, pancit, etc.)

- | | |
|---|--------------|
| 1. Small (Household based) | P1,500.00/yr |
| 2. Medium (With Floor area not more than 100 sq.m.) | P2,500.00/yr |
| 3. Big (With floor area more than 100 sq.m.) | P3,000.00/yr |

b. Marine product processing

- | | |
|---|--------------|
| 1. Small (Household based) | P1,500.00/yr |
| 2. Medium (With floor area not more than 100 sq.m.) | P3,000.00/yr |
| 3. Big (With floor area more than 100 sq.m.) | P5,000.00/yr |

c. Machine Shops

- | | |
|---|--------------|
| 1. Small (Not more than 2 milling machines) | P2,500.00/yr |
| 2. Medium(3 to 4 milling machines) | P3,000.00/yr |
| 3. Big (more than 4 milling machines) | P4,500.00/yr |

d. Automotive/Motorcycle repair shops

- | | |
|---|--------------|
| 1. Small (Household based) | P1,500.00/yr |
| 2. Medium (With floor area not more than 100 sq.m.) | P2,500.00/yr |
| 3. Big (With floor area more than 100sq.m.) | P3,000.00/yr |

e. Junk/Scrap metal Shops

- | | |
|--|--------------|
| 1. Small (with yard less than 60 sq.m.) | P3,000.00/yr |
| 2. Medium (with yard not more than 120sq.m.) | P4,000.00/yr |
| 3. Big (with yard more than 120 sq.m.) | P5,000.00/yr |

f. Marine Product dealer / buyer

- | | |
|--|--------------|
| 1. Small (Household based) | P1,500.00/yr |
| 2. Medium (with floor area not more than 100sq.m.) | P2,500.00/yr |
| 3. Big (With floor area more than 100 sq.m) | P3,000.00/yr |

g. Barber shops/Beauty Parlor

- | | |
|--|--------------|
| 1. Small (not more than 2 chairs) | P1,500.00/yr |
| 2. Medium (3 chairs but not more than 6) | P2,500.00/yr |
| 3. Large (7chairs or more) | P3,000.00/yr |

h. Millers (Rice and Corn)

- | | |
|--|--------------|
| 1. Small (with one milling machines) | P3,000.00/yr |
| 2. Medium (more than one milling machines) | P6,000.00/yr |

6. HOTELS/MOTELS/LODGING HOUSE

- | | |
|----------------------------------|--------------|
| 1. Small (not more than 6 rooms) | P2,500.00/yr |
| 2. Medium (7 to 25rooms) | P3,000.00/yr |
| 3. Big (more than 25 rooms) | P6,000.00/yr |

7. MASSAGE/SAUNA PARLORS

- | | |
|--|--------------|
| 1. Small (not more than 6 cubicles or beds) | P1,500.00/yr |
| 2. Medium (more than 6 cubicles/beds but not more than 12) | P2,500.00/yr |
| 3. Big (more than 12 cubicles or beds) | P3,000.00/yr |

8. APPLIANCES, MOTORCYCLES, BICYCLES OR PARTS DEALER

- | | |
|---|--------------|
| 1. Small (Floor Area=16 sq.m. or less) | P2,500.00/yr |
| 2. Medium (Floor Area= 17 sq.m. to 25 sq. m.) | P3,000.00/yr |
| 3. Big (Floor Area= 26 sq.m. or more) | P4,500.00/yr |

9. GENERAL HARDWARES (Construction, Electronics, Automotive, etc.)

- | | |
|---|--------------|
| 1. Small (Floor Area=16 sq.m. or less) | P3,000.00/yr |
| 2. Medium (Floor Area= 17 sq.m. to 25sq.m.) | P4,500.00/yr |
| 3. Big (Floor Area= 26 sq.m.or more) | P6,000.00/yr |

10. SHOPPING CENTER

- | | |
|--------------------------------|--------------|
| 1. Without Grocery or Fastfood | P3,000.00/yr |
| 2. With Grocery or Fastfood | P4,500.00/yr |
| 3. With Grocery and Fastfood | P6,000.00/yr |

12. DRY GOODS, RICE RETAILERS, GROCERIES

- | | |
|--|--------------|
| 1. Small (Floor Area= Not more than 10 sq. m.) | P1,500.00/yr |
| 2. Medium (Floor Area=Not more than16 sq. m.) | P2,500.00/yr |
| 3. Big (Floor Area= More than16 sq. m.) | P3,000.00/yr |

10. FASTFOOD CHAIN, RESTAURANT AND BARS

- | | |
|---|--------------|
| 1. Small (With 10 tables or less) | P2,500.00/yr |
| 2. Medium (With 11 tables less than 15) | P4,500.00/yr |
| 3. Large (With 16 tables or more) | P6,000.00/yr |

13. CARENDERIA, VIDEOKE BARS, REFRESHMENTS, EATERY

1. Small (With 5 tables or less)	P1,500.00/yr
2. Medium (With 6 tables but more than 12)	P2,500.00/yr
3. Large (With more than 12 tables)	P3,000.00/yr

14. BANKS, PAWNSHOPS, LENDING CENTER

1. Small (Floor area= less than 40 sq.m.)	P1,500.00/yr
2. Medium (F.A.=41 sq.m. but more than 80 sq. m.)	P2,500.00/yr
3. Large (F.A.=more than 80sq.m.)	P3,000.00/yr

15. WET MARKET

a. Fresh Fish Section	P1,500.00/yr
b. Dried Fish Section	P1,500.00/yr
c. Vegetable Section	P1,500.00/yr
d. Meat Section	P1,500.00/yr

16. COCKPIT ARENA

P3,000.00/yr

17. HOUSEHOLD

P50.00/month

18. SPECIAL TRIP

P1,000.00/trip

19. TIPPING FEE (by Barangay Waste Collector)

1-4 cu.m	P100.00
5 cu.m or more	P200.00

A penalty of 25% shall be imposed for late or non- payment of Solid Waste Management fees.

ARTICLE C**MUNICIPAL ENVIRONMENT AND NATURAL RESOURCES FEES AND CHARGES**

ENVIRONMENTAL FEE (Going to Buluan Island)	P20.00/person
TOUR GUIDE FEE (Maximum of 3 hours)	P100.00/person
TERMINAL FEE (Boat Landing going to Buluan Island)	P25.00/person
SNORKEL & MASK (Maximum of 4 hours use)	P150.00/piece
FLIPPER (Maximum 4 hours use)	P100.00/piece
LIFE VEST RENTAL (Maximum 4 hours use)	P100.00/piece
TRANSPORT/BOAT TO BULUAN	P100.00/person
OXYGEN TANK REFILL	P250.00/tank
DIVING GEAR (Complete set/maximum 3 hours use)	P1,500.00/set
SNORKELING GUIDE FEE (Maximum of 4 hours/person)	P200.00/person
DIVING GUIDE FEE (Maximum of 3 hours/person)	P500.00/person
BCD-RENTAL	P500.00/piece
REGULATOR	P500.00/piece
WET SUIT	P250.00/piece
MANGROVE BOARDWALK TREKKING	P25.00/person
ORGANIC COMPOST/SOIL CONDITIONER	P250.00/sack

ARTICLE D**Charges for Parking**

Section 5D.01. Imposition of Fee. There shall be collected fees for the use of municipal owned parking area or designated streets for pay parking in accordance with the following schedule:

(a) Parking Rates

Vehicle Type	Monthly	6 A.M. to 6 P.M.	After 6 P.M. & Before 6 A.M.
		DAY	NIGHT

- d. Chicken/duck
 - 1.) Game fowl P 50.00/head
 - 2.) Breeder P 25.00/head
- e. Pet Animals P 50.00/head

4. Animal Vaccination (w/ free consultation)

- a. Cat/head/injection P50.00
- b. Dog/head/injection P50.00

ARTICLE H ELECTRICITY CHARGES

Load Classification	Amount of Fee
Light Bulb	P 50.00/day
Charging Devices	P 50.00/day
Heating/Cooking Elements	P 150.00/day
Electric Fan (heating fan, wall fan, ceiling fan)	P 100.00/day
Refrigerator, Freezer	P 200.00/day
Blender	P 150.00/day
Welding Machine	P 500.00/day
Aircon	P 500.00/day
Flat Iron	P 500.00/day

ARTICLE I CEMETERY CHARGES

Section 5I.01. As used in this code the following terms shall be interpreted as follows:

a. Cadaver Niche or Cemetery Tomb – The concrete niches intended to accommodate cadavers inside coffins or other containers. It shall be of two classifications: for adults and for children. Cadaver Niches maybe constructed along the perimeter lines of the cemetery which will serve as cemetery perimeter fence.

b. Bone Niche – The small concrete niche to accommodate the small boxes containing the bones and skull of cadaver form the cadaver niche.

c. Perpetual Niches for Bones – Any of the constructed Bone Niche, where interested parties preserve the bones of their love ones in perpetuity after paying the necessary fee.

d. Caretaker – The personnel assigned at the Ipil Public Cemetery to take charge of the management.

e. Tomb Permit – The permit granted after payment of a fee for the use of the cemetery tomb.

f. Burial Permit – The permit issued by the Municipal Mayor's office after a death certificate has been issued by the Office of the Local Civil Registrar.

g. The municipality of Ipil having a house or has rented one for at least six months before his death as verified by the Municipal Economic Enterprises.

h. Non-residents – Cadavers of persons who are not qualified in letter “g” of this provision.

Section 5I.02. BURIAL PERMIT FEES AND OTHER FEES. The burial permit fees and other fees enumerated herein shall be paid at the Municipal Treasurer's Office through the Municipal Civil Registrar's Office as follows:

TYPE OF PAYMENT	FEES
Burial Permit	Php 300.00
Transfer of Cadaver	300.00
Exhumation of Cadaver	100.00
Removal of Cadaver	100.00

Non-residents shall not be permitted burial unless authorized by the Local Chief Executive and only upon payment of the necessary fees, provided further that entrance fee to non-residents shall be doubled.

Section 51.03 RENEWAL FEE. Representing Maintenance Fees. There shall hereby be imposed the amount of Php150.00 per year as maintenance fees which amount will be paid up to fifth year after which the bones will be transferred to the Perpetual Bone Niche.

Non-payment of the renewal fee after three (3) written notices shall subject the skeletal remains or bones for transfer into a common bone depository.

Section 51.05 BURIAL LOT AND FEE. The burial space at the public Cemetery shall be divided into burial lots, its measuring 1.2mx2.4m or 2.88 square meters/ lot and shall be disposed according to the following categories and rates:

1. New Area. The burial lot, as delineated in the ordinance shall be considered as an area, which upon payment of THREE THOUSAND PESOS (3,000.00) for reservation shall duly be considered as an area leased to the applicant for the period of 25 years. The right to sublease the said area shall be strictly prohibited.
2. Government Area. TWO THOUSAND PESOS (2,000.00) per lot for first five (5) years and payment of THREE HUNDRED FIFTY PESOS (350.00) every year thereafter.
3. Regular Area. EIGHT HUNDRED PESOS (800.00) per lot for the first five (5) years and payment of ONE HUNDRED FIFTY PESOS (150.00) for every year thereafter.
4. Apartment Type. SIX THOUSAND FIVE HUNDRED PESOS (P6,500.00) per niche for the first five (5) years and payment of THREE HUNDRED FIFTY PESOS (P350.00) every year after.
4. Pauper Burial Space. TWENTY PESOS (20.00) per lot area.
5. Concerned person/s on entities shall pay the amount of FOUR HUNDRED PESOS (400.00) for a niche that shall be constructed top of an old tomb, and same shall pay ONE HUNDRED FIFTY PESOS (150.00) for every year thereafter.
6. There shall be a strict prohibition of the construction of any structure (payag-payag) atop-atop, kural-kural and bangko-bangko within the burial lot area.

Pauper Burial Space. There shall be allocated in the Public Cemetery an area where niches shall be constructed by the Municipal Government and be designated as pauper burial space. This space shall be divided into two (2) categories, namely:

1. Burial space for deceased persons belonging to a family certified to as indigent by the MSWD.

2. Burial space for those deceased person/s whose remains are unclaimed by immediate kin and/ or relatives ordered and buried by competent authorities.

Provided, that the Municipal Government reserves the right to exhume the of the dead persons referred to hereof after ten (10) years from the date of interment and transfer the same to another appropriated area within the cemetery; provided, further, that space correspondingly vacated shall be made available again for burial purposes.

ARTICLE J

FISHERY RENTAL, LICENSE, PERMIT FEES AND CHARGES

Section 5J.01. General Schedule of fishery, license, fee, and charges:

DESCRIPTION	PARTICULARS	AMOUNT
Auxilliary Invoices	Preserved Fish (iced, frozen, salted, dried, smoked, fermented, etc.) P.50/kg Locon, putian, alimango and other high value crustaceans P.75/kg Other Marine Products Fresh seaweeds P.20/kg Dried seaweeds P.50/kg Bangus fry/Fingerlings P50.00/pot (3,000 pcs) Locon fry/larvae P50.00/pot (3,000 pcs) Crablets P.50/crablet a. Langaw-langaw P.10/each b. Posporo size and above P.20/each Shellfish Sea cucumbers (except threatened or endangered species) 1. Live Sea Cucumbers P 5.00/kg 2. Dried Sea Cucumbers P10.00/kg Sea urchins P 1.00/kg	
Fish Inspection Fee	For inspection service rendered for shipment	P50.00
Registration Fee (Annual)	Motor boat and bancas three (3) gross tons or less operated in this municipality a. Motorized with engine of 10 HP or less P250.00 b. Motorized with engine of 10.5 HP to 15 HP P350.00 c. Motorboats with 15.5 HP and above P550.00 d. Non-motorized boat P100.00	
License Fee	Fishermen's License (Annual) Seaweeds Farm Area -For Ipil residents: .10 centavo/sq.m. -for non-residents: .10 cent./sq.m +30% Fish Processing Establishment a. Small (100 sq.m below) P125.00 b. Medium (101-200 sq.m) P250.00 c. Large P500.00 Fry Gathering (Bangus & Lukon) P500/Fisherfolk household	

Permit Fees/Annum	AQUACULTURE Fishpond operation permit P100.00/ha Fish cage operation permit a. 100 sq.m or less P100.00 b. 100.1 to 500 sq.m P250.00 c. 501 sq. To 1,000 sq.m P1,000.00 Net enclosure or Backyard Fishpens a. Less than 500 sq.m P50.00 b. More than 500 but less than 1,000 sq.m P200.00 -Shellfish operation permit .15 cent./sq.m -Operation of oyster and mussel culture beds P400.00/ha CAPTURE FISHING – GEAR TYPES Fish Corral in Inland Waters/Estuaries a. Less than 500 sq.m P 300.00 b. 501 sq.m to 1,000 sq.m P 400.00 c. 1,001 sq.m to 5,000 sq.m P 500.00 d. 5,001 sq.m to 10,000 sq.m P 600.00 e. 10,001 sq.m or more P1,200.00 Fish Corral in Marine Waters a. Less than 3 meters deep P 300.00 b. 3.1-5 meters deep P 400.00 c. 5.1-8 meters deep P 600.00 d. 8.1-10 meters deep P 800.00 e. 10.1-15 meters deep P1,800.00 f. 15.1 meters deep or more P2,200.00 Stationary Bagnet, Ligt net or “New Look”/unit (Maximum of 2 units per Ipil fisherfolk household and only 1 unit per non-resident household) a. Shallow Area P300.00 b. Deep Sea Area P1,500.00 (+30% additional fee for non-residents) P3,000.00 Stationary Bagnet, Lift net or “New Look” Fiushing Using Nets/Unit a. Bottom-set gill net/Patuloy P15.00/banata b. Cast net/Laya P50.00 c. Gill net/Pukot P15.00/banata d. Drift Gill net P30.00/banata Fishing using traps/unit a. Bubo Big (Pangnukos and Panglapu/isda) P15.00 b. Bubo Small (Panglambay, panglagaw, pangalimango) P10.00 c. Crab lift net P5.00 Hook and Line/Unit/ Others/Unit a. Multiple long line (Palangre) P100.00	
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	b. Multiple hook and line (Undak)	P100.00
	c. Spearfishing	P 30.00
	d. Squid Jigger	P 30.00
	e. Sahid	P 50.00
	f. Linti	P 50.00
	g. Scissors net/Push net (Sudsud)	P 50.00
	Gathering of shells, mollusk, sea cucumbers, seaweeds and other marine products not specified herein (except threatened or endangered species)	P 50.00
	Installation of Fish Aggregating Device (Payao)	
	a. Single-bamboo pole type	P 50.00
	b. Bamboo raft-type	P100.00
	c. Steel FAD	P200.00
	FISH PROCESSING ESTABLISHMENT	
	Crab meat processing/cooking	P200.00
	Boneless	P300.00
	Salting	P100.00
	Drying	P100.00
	Smoking	P200.00
	Crab meat picking	P500.00

Permit Fees per Annum:

- Spear Fishing without compressor or Scuba Gear P 50.00
- Tulis-tulis 80.00

Rental of Diving Gears per day

- Bouyancy Control Device (BDC) 250.00
- Regular 250.00
- Tank 250.00
- Wet Set 150.00
- Mask and Snorkel 75.00
- Fins 75.00
- Boots 75.00
- Life Vest 75.00
- Weight Bell 75.00

Cost of Painting per Year

- a.) Baroto P 50.00
- b.) Pump Boat 100.00
- c.) Fishing Vessel below 3 Tons 175.00

Collection of Fees for Fish Health Laboratory

A. Pathogenic Examination (Standard Method)

- 1. Bacterial Identification P 200.00
- 2. Prawn Fry Quantity Assessment
- a. Cross Microscopic Examination 100.00

B. Physical Chemical Analysis (Standard Method)

- a.) Acidity/Alkalinity P 75.00
- b.) Dissolved Oxygen 75.00
- c.) Carbon Dioxide 75.00
- d.) Ammonia 75.00

Section 5J.02. The Municipal Treasurer shall issue a separate Official Receipt to the Barangay Treasurer for the fees and charges in the implementation of the Municipal Fishery Ordinance. The

100% total collection shall be remitted to the Municipal Treasurer Office before it will be shared as follows:

- 50% - intended for the Local Government Unit
- 25% - intended for the Barangay
- 25% - intended for the BFARMC

Section 5J.03.

VIOLATIONS	PENALTIES
1. Anyone fishing with fish catch of at least five (5) kilogram found within MFGs 1 & 2 without fishery registration (license or permit)	1 st offense:P1,000.00/person 2 nd offense: P1,500.00/person 3 rd offense: P2,000.00/person
2. Anyone Fishing in MFG 3 with or without fishery registration (license or permit)	1 st offense:P1,500.00/person 2 nd offense: P2,000.00/person 3 rd offense: P2,500.00/person
3. Use of Fine Mesh Net in Municipal waters	1 st offense:P1,500.00/person 2 nd offense: P2,000.00/person 3 rd offense: P2,500.00/person plus confiscation of gears
4. Use of active Gear in the Municipal Waters as Lampornas, Beach Seine, Trawl atc. Caught within Ipil Municipal waters.	1 st offense:P1,500.00/person plus confiscation of gears 2 nd offense: P2,000.00/person/person plus confiscation of gears 3 rd offense: P2,500.00/person plus confiscation of gears and filing of case.
5. Possession of explosives, noxious or poisonous substances or Electrofishing device for illegal fishing	1 st offense:P1,500.00/person plus confiscation of explosives, noxious, poisonous or electro. Fishing device. 2 nd offense:2,000.00/person/person plus confiscation of gears 3 rd offense: P2,500.00/person plus confiscation of gears and filing of case.
6. Actual Use of Noxious or poisonous substances or Electro Fishing	1 st offense:P2,000.00/plus confiscation of explosives, noxious, poisonous or electro. Fishing device. 2 nd offense:2,500.00/ plus confiscation of noxious, poisonous or electro. Fishing device. 3 rd offense: P2,500.00/person plus confiscation of noxious, poisonous or electro. Fishing device and Filling of case to BFAR Adjudication Committee.
7. Possession, dealing, selling or disposition of blasted fish	1 st offense:P1,500.00 2 nd offense: P2,000.00 3 rd offense: P2,500 plus confiscation of gears and/or filling of case.

VIOLATIONS	PENALTIES
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8. Anyone operating Small-scale Commercial fishing vessel in MFG1 (0-10 km) such as ring net (Kubkuban), Bag net (Tapay-tapay), mid-water trawl (Palupad) and Drift gill net (Pamo)	1 st offense:P1,500.00/person 2 nd offense: P2,000.00/person 3rd offense: P2,500.00/person plus confiscation of gear and filling of case.
9. Anyone engaging in Small-scale Commercial fishing in MFG 2 (10.1 km and above) such as ring net (kubkuban), bag net (Tapay-tapay), mid-water trawl (Palupad), and Drift gill net (Pamo) without Municipal Permit to operate (MPO) from Ipil LGU and Commercial Fishing Vessel from BFAR (CFVL)	1 st offense:P1,500.00/person 2 nd offense: P2,000.00/person plus confiscation of gear 3rd offense: P2,500.00/person plus confiscation of gear and filling of case.
10. Use of dummy to avail fishery privilege intended to Ipileneos	1 st offense:P2,000.00/person 2 nd offense: P2,500.00/person 3rd offense: P2,500.00/person plus dismantling of fishing gear/structure
11. Use of Unofficial/Un-Prescribed Color of Boats (Motorized and Non-Motorized).	1 st offense: P1,000.00/violator 2 nd offense:P1,500.00/violator 3 rd offense:P2,500.00/violator plus suspension of permits for six (6) months.
12. Use of Destructive Fishing Methods to Coral Reefs and Other Marine Habitat Pursuant to Section 86 of RA 8550	1 st offense:P2,000.00/person 2 nd offense: P2,500.00/person 3rd offense: P2,500.00/person plus filling of case
13. Use of Mechanized Push-Net of Fish Trap Using Fine Mesh Net	1 st offense:P2,000.00/person 2 nd offense: P2,500.00/person 3rd offense: P2,500.00/person plus filling of case
14. Use of Drift Gill Net (Pursuant to RA 8550)	1 st offense:P1,500.00/person 2 nd offense: P2,000.00/person plus confiscation of gear 3rd offense: P2,500.00/person plus confiscation of gear plus filling of case
15. Anyone fishing in MFZ 3 with or without fisherfolk license	1 st offense:P1,500.00 2 nd offense: P2,000.00/ plus confiscation of gear 3rd offense: P2,500.00/person plus confiscation of gear and filling of case
16. Illegal Construction and Operation of Fish Corral/Trap, Fish Pen and Fish Cage	1 st offense:P2,000.00/person 2 nd offense: P2,000.00/person 3rd offense: P2,500.00/person
17. Illegal transfer of ownership of fishing Boat	A fine not exceeding P1,000.00

VIOLATIONS	PENALTIES
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18. Commercial Fishing Vessel Operators Employing Unlicensed Fisherfolk or Fish Worker Crew	A fine of P500.00 each for every month that the same person has been employed and/or P1,000.00 for every month of each unlicensed crew member who has been employed.
19. Obstruction of Fishery Law Enforcement Officers (Pursuant to Section 106 of RA 8550) Boat owner, master or operator or any person acting on his behalf of any fishing boat who evades, obstructs or hinder any authorized fishery law enforcement officer of this municipality to perform his duties	1 st offense:P2,000.00/person 2 nd offense: P2,500.00/person 3 rd offense: P2,500.00/person plus filling of case

ARTICLE K

TRAFFIC MANAGEMENT & SAFETY FINES AND PENALTIES

1. Use of motor vehicle repair shops, including display centers/stores, vulcanizing areas and battery establishments on any portion of roads, streets or sidewalks for display, repair, storage, and parking of vehicles (Section 67, Art. III, Chapter III, Ord. No. 01-329-2014)
 - a.) First offense -A fine of P1,000.00 plus verbal warning
 - b.) Second offense -A fine of P1,500.00 plus warning letter
 - c.) Third offense -A fine of P2,000.00 plus demolition of structure
2. Use of motor vehicle repair shops, display, repair, vulcanizing and battery establishments on any portion of roads, streets or sidewalks for display, repair, storage, and parking of vehicles (Section 68, Art. III, Chapter III, Ord. No. 01-329-2014)
 - a. First offense -A fine of P1,000.00 plus verbal warning
 - b. Second offense -A fine of P1,500.00 plus warning letter
 - c. Third offense -A fine of P2,000.00 plus demolition of structure
3. Use of on any streets, roads, highways, sidewalks, park or plaza for washing of motor vehicles (Section 69, Art. III, Chapter III, Ord. No. 01-329-2014)
 - a. First offense -A fine of P1,000.00 plus verbal warning
 - b. Second offense -A fine of P1,500.00 plus warning letter
 - c. Third offense -A fine of P2,000.00 plus demolition of structure
4. Use of any portion of the road including sidewalk as garage (Section 71, Art. III, Chapter III, Ord. No. 01-329-2014)
 - d.) First offense -A fine of P1,000.00 plus verbal warning
 - e.) Second offense -A fine of P1,500.00 plus warning letter
 - f.) Third offense -A fine of P2,000.00 plus demolition of structure
5. Failure to show and/or surrender to traffic enforcers Driver's License when demanded (Section 72, Art. I, Chapter IV, Ord. No. 01-329-2014, Ord. No. 01-329-2014)
 - a.) First offense - P300.00
 - b.) Second offense - P500.00
 - c.) Third offense - P750.00
6. Use of another person's driver's license (Section 72.iv, Art. I, Chapter IV, Ord. No. 01-329-2014)

- a.) First offense - P 500.00
- b.) Second offense - P 750.00
- c.) Third offense - P1,000.00

7. For making, using or attempting to make or use driver's license, badge, certificate or registration, number plate, tag or permit in imitation or similitude, or intended to be used as or for a legal license, badge, certificate, plate, tag or same to another, or false or fraudulently represent as certificate, plate, tag or permit issued under RA 4136 which is delinquent or which has been suspended or revoked, a fine of not exceeding Three Hundred Pesos (P300.00) (Section 72.iv, Art. I, Chapter IV, Ord. No. 01-329-2014)
8. For possession and use of fake driver's license, a fine not exceeding Three Hundred Pesos (P300.00) (Section 72.v, Art. I, Chapter IV, Ord. No. 01-329-2014)
9. For Student Driver operating a MV not being accompanied by a licensed driver a fine of not exceeding Two Hundred Pesos (P200.00) (Section 72.vi, Art. I, Chapter IV, Ord. No. 01-329-2014)
10. Use of expired or face Traffic Violation Report (TVR) in lieu of driver's license a penalty of Three Hundred Pesos (P300.00) (Section 72.vii, Art. I, Chapter IV, Ord. No. 01-329-2014)
11. Driving a motor vehicle with delinquent, suspended or invalid registration, or without registration or without the proper license plate for the current year, Three Hundred Pesos (P300.00) fine (Section 73.i.D, Art. I, Chapter IV, Ord. No. 01-329-2014)
12. For failure to show and/or surrender to traffic enforcers Official Receipt (RP/CR/OR) when demanded (Section 73.iii, Art. I, Chapter IV, Ord. No. 01-329-2014)
 - a.) First offense - P300.00
 - b.) Second offense - P500.00
 - c.) Third offense - P750.00
13. Motor vehicle's body number, engine number and color do not correspond with the description in the registration papers/certificate a fine of One Hundred Pesos (P100.00) and immediate rectification of the offence committed (Section 73.iv, Art. I, Chapter IV, Ord. No. 01-329-2014)
14. Operating MV with unregistered, substitute or replacement engine, engine block or chassis, change color, change body or configuration a fine of One Hundred Pesos (P100.00) and immediate rectification of the offence committed. (Section 73.v, Art. I, Chapter IV, Ord. No. 01-329-2014)
15. Operating/allowing the operation of MV with a suspended/revoked Certificate of Registration a fine of One Hundred pesos (P100.00) and immediate rectification of the offence committed (Section 73.vi, Art. I, Chapter IV, Ord. No. 01-329-2014)
16. Operating Motorized Tricycle without Franchise (Section 73.vii, Art. I, Chapter IV, Ord. No. 01-329-2014)
 - a.) First offense -A fine of P1,000.00
 - b.) Second offense -A fine of P1,500.00 plus warning letter
 - c.) Third offense -A fine of P2,000.00 and impoundment of the MV Unit until compliance of requirements
17. Operating habal-habal without permit to operate to transport passengers and cargoes (Section 73.viii, Art. I, Chapter IV, Ord. No. 01-329-2014)
 - a.) First offense -A fine of P1,000.00
 - b.) Second offense -A fine of P1,500.00 plus warning letter
 - c.) Third offense -A fine of P2,000.00 and impoundment of the MV Unit until compliance of requirements

18. Failure to attached firmly, display and dirty or uncared number plates (Section 74.i, Art. I, Chapter IV, Ord. No. 01-329-2014)

- a.) First offense -A fine of P300.00
- b.) Second offense -A fine of P500.00
- c.) Third offense -A fine of P750.00 and impoundment of the MV unit until compliance of requirements

19. Use of License Plates that are different from the body operator number on Public Utility Vehicle (Section 74.ii, Art. I, Chapter IV, Ord. No. 01-329-2014, Ord. No. 01-329-2014)

- a.) First offense -A fine of P300.00
- b.) Second offense -A fine of P500.00
- c.) Third offense -A fine of P1,000.00 and impoundment of the MV unit until compliance of requirements

20. Improper display of MV plates by owner (Section 74.iii, Art. I, Chapter IV, Ord. No. 01-329-2014)

- a.) First offense -A fine of P300.00
- b.) Second offense -A fine of P500.00
- c.) Third offense -A fine of P750.00 and impoundment of the MV unit until compliance of requirements

21. Failure to show LTO Sticker showing current registration on proper MV plate (Section 74.iv, Art. I, Chapter IV, Ord. No. 01-329-2014)

- a.) First offense -A fine of P100.00
- b.) Second offense -A fine of P200.00
- c.) Third offense -A fine of P300.00 and impoundment of the MV unit until compliance of requirements

22. Use of tampered marked plates and/or stickers by operator/owner and/or driver (Section 74.v, Art. I, Chapter IV, Ord. No. 01-329-2014)

- a.) First offense -A fine of P300.00
- b.) Second offense -A fine of P500.00
- c.) Third offense -A fine of P1,000.00, imprisonment of the Driver and/or owner plus automatic revocation of driver's license and certificate of registration

23. Any attempt by the owner/operator of illegal transfer and use of MV plates/tags or stickers from one MV to another except security plates on authorized vehicle (Section 74.v, Art. I, Chapter IV, Ord. No. 01-329-2014)

- a.) First offense -A fine of P300.00
- b.) Second offense -A fine of P500.00
- c.) Third offense -A fine of P1,000.00, imprisonment of the driver and/or owner plus automatic revocation of driver's license and certificate of registration

24. MV Equipment, Parts, Accessories, Devices and Markings (Sec. 75, Art. II, Chap. IV, Ord. No. 01-329-2014)

I. APPEARANCE

- A. Dirty or unsightly or dilapidated MV;
- B. Failure to paint or improper painting;
- C. Failure to paint appropriate body number on a MV for hire on both sides
- D. Without capacity markings;
- E. Failure to put "NOT FOR HIRE" sign in a private jeepney;

- F. Defective MV unit;
- G. Without name or business name and address inscribed on both sides of MV used for public transport services;

First offense	-A fine of P300.00
Second offense	-A fine of P500.00
Third offense	-A fine of P750.00 and impoundment of the MV unit until compliance of requirements

II. TIRES

- A. MVs with metallic tires a fine not exceeding One Hundred Pesos (P100.00)
- B. Worn out tires deemed unfit for travel

First offense	-A fine of P200.00
Second offense	-A fine of P400.00
Third offense	-A fine of P600.00 and impoundment of the MV unit until compliance of requirements

- C. MVs without spare tires

First offense	-A fine of P100.00
Second offense	-A fine of P200.00
Third offense	-A fine of P300.00 and impoundment of the MV unit until compliance of requirements

III. Absence of and or defective brakes a fine not exceeding (Five) Hundred Pesos (P500.00)

IV. HORNS

- A. Use of Improper, dysfunctional and/or defective horns a fine not exceeding (Five) Hundred Pesos (P500.00)

- B. Use of unauthorized bell sirens or exhausts whistle on emergency

First offense	-A fine of P1,000.00
Second offense	-A fine of P1,500.00
Third offense	-A fine of P2,000.00 and impoundment of the MV unit until compliance of requirements

V. LIGHTS

- A. Use of unnecessary lights visible in front of vehicle;
- B. Missing or defective headlights/taillights;
- C. Missing red rear lights at both/each side visible at least 100m from vehicle;
- D. Missing or defective plate light;
- E. Missing or defective interior light/s;
- F. Missing or defective brake lights

First offense	-A fine of P300.00
Second offense	-A fine of P500.00
Third offense	-A fine of P750.00 and impoundment of the MV unit until compliance of requirements

VI. ROUTING

- A. Failure to paint the authorized route at the sight of the MV;
- B. Improper painting of the authorized route at the side of the MV;
- C. Painting of unauthorized route;
- D. Non-painting of business or trade name

First offense	-A fine of P300.00
Second offense	-A fine of P500.00

Third offense	-A fine of P750.00 and impoundment of the MV unit until compliance of requirements
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VII. OTHER ACCESSORIES

- A. Missing or defective wiper on the windshield

First offense	-A fine of P300.00
Second offense	-A fine of P500.00
Third offense	-A fine of P750.00 and impoundment of the MV unit until compliance of requirements
- B. Defective or broken windshield

First offense	-A fine of P300.00
Second offense	-A fine of P500.00
Third offense	-A fine of P750.00 and impoundment of the MV unit until compliance of requirements
- C. Signaling Device

First offense	-A fine of P300.00
Second offense	-A fine of P500.00
Third offense	-A fine of P750.00 and impoundment of the MV unit until compliance of requirements
- D. Without or defective speedometer or tachometer

First offense	-A fine of P300.00
Second offense	-A fine of P500.00
Third offense	-A fine of P750.00 and impoundment of the MV unit until compliance of requirements
- E. Without rear view mirror

First offense	-A fine of P300.00
Second offense	-A fine of P500.00
Third offense	-A fine of P750.00 and impoundment of the MV unit until compliance of requirements
- F. Failure to carry EWD, and/or failure to install it 4 meters away to the front and rear of the stalled/disabled MV

First offense	-A fine of P300.00
Second offense	-A fine of P500.00
Third offense	-A fine of P750.00 and impoundment of the MV unit until compliance of requirements
- G. Without Safety Belt installed in the MV
 1. On the driver for failure to wear the prescribed seat belt devices and/or failure to require his passengers to wear the prescribed seat belt device

First violation	-A minimum fine of (Three) (Hundred Pesos P300.00) but not to exceed One Thousand Pesos (P1,000.00)
Second violation	-A minimum fine of (Five) Hundred Pesos (500.00) but not to exceed Two Thousand Pesos (P2,000.00)

Third and succeeding
violations

-A minimum fine of (Seven Fifty) Pesos (750.00)
but not to exceed Five Thousand Pesos and suspension
of driver's license for a period of one (1) week

2. Failure to post appropriate signage instructing front seat passengers to wear seat belts when inside the vehicle both driver and operator shall be fined a minimum of Three Hundred Pesos (P300.00) but not to exceed Three Thousand Pesos (P3,000.00)

H. Without trash box/receptacle

First offense	-P 300.00
Second offense	-P500.00
Third offense	-P750.00
For every offense thereafter	-P1,000.00

- I. Violations falling under Mufflers a fine of Two Hundred Pesos (P200.00) including confiscation of the accessories deemed illegal.

OTHER VIOLATIONS AND PENALTIES

A. Weights and Load Limits

- a. Allowing more passengers and/or more freight or cargo in his vehicle more than the registered carrying capacity

First offense	-A fine of P500.00
Second offense	-A fine of P750.00
Third offense	-A fine of P1,000.00 and impoundment of MV

Trucks and Vehicles of any kind and type having gross weight of more than 12,000 kilograms (12 tons) pass through, stop and park in any portion of Municipality of Ipil road networks

First offense	-A fine of P1,000.00
Second offense	-A fine of P2,000.00
Third offense	-A fine of P3,000.00 and impoundment of MV

Every tricycle and habalhabal carrying babies especially when baby is sitting in front of the driver

First offense	-A fine of P500.00
Second offense	-A fine of P1,000.00
Third offense	-A fine of P1,500.00

For All Habal-habal

1. Failure to comply with provision that a motorcycle is a motor vehicle of two wheels capable of carrying three persons including the one who drives it

First offense	-A fine of P500.00
Second offense	-A fine of P750.00
Third offense	-A fine of P1,000.00 plus confiscation of the driver's license, cancellation of the permit to operate, and impoundment of the MV

3. Carry babies, in every tricycle and habal-habal, especially when the baby is sitting in front of the driver

First offense	-A fine of P500.00
Second offense	-A fine of P750.00
Third offense	-A fine of P1,000.00

A. Allowing passenger to ride on the running board or on top or cover of vehicle

First offense	-A fine of P500.00
Second offense	-A fine of P750.00
Third offense	-A fine of P1,000.00 plus confiscation of the driver's license, cancellation of the permit to operate, and impoundment of the MV

B. Violations regarding "Restrictions as to Speed" and "Parking in Prohibited Places"

First offense	-A fine of P50.00
Second offense	-A fine of P75.00
Third offense	-A fine of P100.00

C. Violation Related to Driving

1. Driving under the liquor a fine of not less than Two Hundred Pesos (P200.00) or more than Five Hundred Pesos, or imprisonment of not more than three months, or both at the discretion of the Court. (Chapter V, Article I, Section 56, RA 4136)
2. Reckless driving or without reasonable caution considering the width, traffic, grades, crossing, curvatures, visibility and other conditions of the highway and the condition of the atmosphere and weather, or so as to cause excessive or unreasonable damage to the highway (Article V, Section 48, RA 4136)

First offense	-A fine of P500.00
Second offense	-A fine of P750.00
Third offense	-A fine of P1,000.00 plus confiscation of driver's license and MV certificate of registration, and impoundment of MV

3. Disregarding traffic signs
4. Failure to use helmet while driving/riding a motorcycle
5. Arrogance or Discourtesy to fellow drivers and person/s in authority
6. Driving in slippers
7. Driving in sleeveless shirt
8. Driving in short pants
9. Texting while driving
10. Smoking while driving

First offense	-A fine of P500.00
Second offense	-A fine of P750.00
Third offense	-A fine of P1,000.00 plus confiscation of driver's license and MV certificate of registration, and impoundment of MV

OTHER VIOLATIONS

A. Smoke belching

First offense	-A fine of P500.00
Second offense	-A fine of P750.00
Third offense	-A fine of P1,000.00 impoundment of the MV

B. Causing an obstruction to traffic

C. Hitching or permitting a person on a bicycle or roller skates to hitch to the vehicle

First offense	-A fine of P500.00
Second offense	-A fine of P750.00
Third offense	-A fine of P1,000.00 impoundment of the MV

D. Failure to give way to police or fire department vehicle or ambulance and other emergency vehicles

First offense	-A fine of P500.00
Second offense	-A fine of P750.00
Third offense	-A fine of P1,000.00 impoundment of the MV

E. Driving or Parking on Sidewalk

F. Illegal turn

G. Illegal right turn

H. Illegal left turn

I. Illegal entry in one-way streets

J. Driving against traffic/counterflow

K. Failure to yield to the right of way

L. Failure to come to a complete stop at a through street

M. Failure to come to a complete stop at an intersection

N. Failure to give proper turn/stop signals

O. No "no smoking sign" inside the MV for public utility vehicles

P. "Fare Discount" violations

Q. "Day Off" violations

R. "Color Coding" violations

S. Failure to stop motor vehicle and apply handbrake when unattended

First offense	-A fine of P300.00
Second offense	-A fine of P500.00
Third offense	-A fine of P750.00 plus confiscation of driver's license and MV certificate of registration, and impoundment of MV

VIOLATIONS RELATED TO OVERTAKING

A. Illegal overtaking

B. Overtaking at an unsafe distance

C. Cutting an overtaken vehicle

D. Failure to give way to an overtaken vehicle

E. Increasing speed when being overtaken

F. Overtaking when left side is not visible or clear

G. Overtaking on a crest or grade

H. Overtaking on a curve

I. Overtaking on a railway grade crossing

J. Overtaking between "Men Working" or "Caution" signs

K. Overtaking in any "no-passing or overtaking zone"

First offense	-A fine of P300.00
Second offense	-A fine of P500.00
Third offense	-A fine of P750.00 and suspension and/or revocation of franchise to operate for motorized tricycle and permit to operate for habal-habal, confiscation of

driver's/owner's license and MV certificate of registration until appropriate regulations are complied with accordingly

ARTICLE L

PENALTIES ON THE USE, SALE, DISTRIBUTION AND ADVERTISEMENT OF CIGARETTES, ELECTRONIC CIGARETTES AND OTHER TOBACCO PRODUCTS

Section 5L.01. The following acts are declared unlawful and prohibited pursuant to Section 5, Ordinance No. 08-453-2017:

a. Smoking or vaping in enclosed or partially enclosed public places, workplaces, public conveyances (whether mobile or stationary), or other public places, (such as enumerated under Section 4k, Ord. No. 08-453-2017), except in designated smoking areas duly approved and fully compliant with the requirements Section 4c, Ord. No. 08-453-2017;

b. For persons-in-charge to allow, abet or tolerate smoking or vaping in places enumerated in the preceding paragraph, outside of approved designated smoking area;

c. Selling or distributing tobacco product and/or Electronic Nicotine Delivery Systems (ENDS) to minors;

d. Purchasing tobacco products and/or ENDS from minors;

e. Ordering, instructing or compelling a minor to use, light up, buy, sell distribute, advertise or promote tobacco product and/or ENDS;

f. Selling or distributing tobacco products and/or ENDS in a school, public playground or other facility frequented by minors, offices of the Department of Health (DOH) and attached agencies, hospitals and health facilities, or within 100 meters from any point in the perimeter of these places;

g. Selling of tobacco products and/or ENDS within premises of a government facility;

l. Selling of tobacco products and/or ENDS without a municipal permit to sell Tobacco products or ENDS;

m. Selling of tobacco products and/or ENDS as individual pieces or per stick, or in tobacco product packs containing less than 20 sticks/pieces;

n. Selling tobacco products and/or ENDS removed from its original product packaging or without the proper government-regulated and approved health warning;

o. Selling tobacco products and/or ENDS by ambulant or street vendors, including other mobile or temporary stalls, kiosks, stations or units;

p. Selling or distributing of sweets, snacks, toys or any other objects in the form of tobacco products which may appeal to minors;

q. Placing cinema or outdoor advertisements of tobacco products and/or ENDS;

r. Placing, posting, displaying or distributing advertisement and promotional materials of tobacco products or ENDS, such as but not limited to leaflets, posters, display structures and other materials within an establishment when such establishment or its location is prohibited from selling tobacco products and/or ENDS;

s. Placing, posting, displaying or distributing advertisement and promotional materials of tobacco products or ENDS, such as but not limited to leaflets, posters, display structures and other materials that show a tobacco/ENDS brand's name (including company name), logo or indicia, such as in a point-of-sales establishment, where minors are allowed entry;

t. Conducting promotional activities, campaigns, events, product sampling, and the like, where the establishment or its location is prohibited from selling tobacco products and/or ENDS, and/or where minors are allowed entry;

u. Displaying and placing tobacco products and/or ENDS in open store shelves/racks, except in enclosed, opaque and single-colored storage/containments;

v. Facilitation, participation or partnership engaged by any government official or personnel, regardless of employment status (permanent, casual, contractual, job order, consultant or special appointment) in any form of contribution, sponsorship or corporate social responsibility (CSR) activity, event, program or project by a tobacco company, tobacco industry front groups, or any representation working, to protect tobacco industry interest, executed for or within the territorial jurisdiction of the (LGU-IPIL), with the aim, effect or likely effect of promoting a tobacco product and/or ENDS, its use either directly or indirectly.

Section 5L.02. Penalties. The following fines and penalties shall be imposed on violators of the unlawful and prohibited acts:

a. Violations of Section 5N.01 (a), (b) Smoking or Vaping and Section 6, Ordinance No. 08-453-2017

Administrative Fine:

- | | |
|-----------------------------------|--|
| i. First Offense | P 500.00 |
| ii. Second Offense | P 1,000.00 |
| iii. Third and Subsequent Offense | P 1,500.00 or imprisonment for a period not exceeding 6 months, or both at the discretion of the court. Suspension or revocation of business license or permit (in case of a business entity or establishment), if applicable. |

b. Violation of Section 5N.01 (c) to (q) Sales/Access Restriction and Advertising and Promotion Ban

Administrative Fine:

- | | |
|-----------------------------------|---|
| i. First Offense | P2,000.00 |
| ii. Second Offense | P3,000.00 |
| iii. Third and Subsequent Offense | P5,000.00 or imprisonment for a period not exceeding 1 year, or both revocation of business license or permit (in case of a business entity or establishment), if applicable. |

c. Violation of Section 5N.01 (r) Sponsorship/Contribution/Partnership with the Tobacco Industry Involving Government Officials/Personnel

Apply Rules and Sanctions as prescribed by RA 3019, RA 6713, Revised Penal Code (1932), and/or the CSC-DOH Joint Memorandum Circular 2010-01.

d. Revocation or Suspension of License/Permit. The license/permit to sell (tobacco products/ENDS) or to operate of any establishment or of any public conveyance covered by the ordinance shall also be suspended for at least (1) week but not more than one (1) month, or revoked, should the same fail to perform the necessary action within fifteen (15) days upon receipt of violation notice or fail to pay within seven (7) working days the corresponding penalty as stated in the citation ticket for the violation committed. Should the license/permit found to be in violation of the ordinance, fall outside of the jurisdiction of the respective Local Government Unit (LGU), the recommendation for revocation or suspension of license/permit shall be forwarded to the appropriate LGU, agency or governing body. The suspension or revocation of the license/permit of the erring establishment or public conveyance shall only be lifted once all the requirements set forth upon re-inspection and evaluation of the Health Office, Building/Engineering Office, Business Permits and Licensing Office and/or the appropriate agency or governing body has been fully complied with. Any Task Force

member may recommend the revocation or suspension of license or permit of an erring establishment to the appropriate office.

e. Community Service. If a violator is unable to pay the fines imposed, he or she may choose to render community service within the municipality. For every hour of community service rendered, his/her outstanding fine shall be reduced by an amount equivalent to triple the hourly minimum wage (or other computation for the total hours needed to be rendered) in the municipality.

f. Confiscation or Removal. Tobacco products, ENDS and their advertising/promotions paraphernalia associated with any violation of the prohibited acts in this ordinance may be subject to confiscation and/or removal.

Section 5L.03. Citation Ticket System. Violators of this ordinance shall be informed of their violation and the penalty associated with it by means of a Citation Ticket System presented and provided for authorized under Ordinance No. 03-495-2018.

CHAPTER VI COMMUNITY TAX

Section 6.01. Imposition of Tax. There shall be imposed a community tax on persons, natural or juridical, residing in the municipality.

Section 6.02. Individual Liable to Community Tax. Every inhabitant of the Philippines who is the resident of this municipality, eighteen (18) years of age or over who has been regularly employed on a wage or salary basis for at least thirty (30) consecutive working days during any calendar year, or who is engaged in business or corporation, or who owns real property with an aggregate assessed value of One Thousand (P1,000.00) Pesos or more, or who is required by law to file an income tax return shall pay an annual community tax of Five (P5.00) Pesos and an annual additional tax of One Peso (P1.00) for every One Thousand Pesos (P1,000.00) of income regardless of whether from business, exercise of profession or from property which in no case shall exceed Five Thousand Pesos (P5,000.00). In the case of husband and wife, the additional tax herein imposed shall be based upon the total property owned by them and the total gross receipts or earnings derived by them.

Section 6.03. Juridical Persons Liable to Community Tax. Every corporation no Matter how created or organized, whether domestic or resident-foreign, engaged in or doing business in the Philippines whose principal office is located in this Municipality shall pay an annual Community Tax of Five Hundred Pesos (P500.00) and an additional tax, which in no case, shall exceed Ten Thousand Pesos (P10,000.00) in accordance with the following schedule:

(a) For every Five Thousand (P5,000.00) Pesos worth of real property in the Philippines owned by it during the preceding year based on the valuation used in the payment of real property tax under existing laws, found in the assessment rolls of this municipality where the real property is situated Two (P2.00) Pesos; and

(b) For every Five Thousand (P5,000.00) Pesos of gross receipts or earnings derived by it from its business in the Philippines during the preceding year-Two (P2.00) Pesos.

The dividends received by a corporation from another corporation shall, for the purpose of the additional tax, be considered as part of the gross receipts or earnings of said corporation.

Section 6.04. Exemptions. The following are exempted from the Community Tax: Diplomatic and consular representatives; and Transient visitors when their stay in the Philippines does not exceed three (3) months.

Section 6.05. Place of Payment. The community tax shall be paid in the Office of the Municipality Treasurer or to the deputized Barangay Treasurer.

Section 6.06. Time of Payment; Penalties for Delinquency.

(a) The Community Tax shall accrue on the first (1st) day of January each year which shall be paid not later than the last date of February of each year.

(b) If a person reaches the age of eighteen (18) years or otherwise loses the benefit of exemption on or before the last day of June, he shall be liable for the community tax on the day he reaches such age or upon the day the exemption ends. However, if a person reaches the age of eighteen (18) years or loses the benefit of exemption on or before the last day of March, he shall have twenty (20) days to pay Community Tax without becoming delinquent.

Persons who come to reside in the Philippines or reach the age of eighteen (18) years on or after the first (1st) day of July of any year, or who cease to belong to an exempt class on or after the same date, shall not be subject to the Community Tax for that year.

(c) Corporations established and organized on or before the last day of June shall be liable for the Community Tax for that year. But corporations established and organized on or before the last day of March shall have twenty (20) days within which to pay Community Tax without becoming delinquent. Corporations established and organized on or after the first day of July shall not be subject to the Community Tax for that year.

(d) If the tax is not paid within the time prescribed above, there shall be added to the unpaid amount an interest of twenty-four (24%) percent per annum from the due date until it is paid.

Section 6.07. Community Tax Certificate. A Community Tax Certificate shall be issued to every person or corporation upon payment of the Community Tax. A Community Tax Certificate may also be issued to any person or corporation not subject to the Community Tax upon payment of One Peso (P1.00).

Section 6.08. Presentation of Community Tax Certificate on Certain Occasions.

(a) When an individual subject to the Community Tax acknowledges any document before a notary public, takes the oath of office upon election or appointment to any position in the government service; receives any license, certificate, or permit from any public authority; pays any tax or fee, receives any money from public funds, transacts any official business; or receives any salary or wage from any person or corporation, it shall be the duty of any person, officer or corporation with whom such transaction is made or business done or from whom any salary or wage is received to require such individual to exhibit the Community Tax Certificate. The presentation of Community tax Certificate shall not be required in connection with the registration of a voter.

(b) When through its authorized officers, any corporation subject to the Community Tax receives any license, certificate, or permit from any public authority, pays any tax or fee, receives money from public funds, or transacts other official business it shall be the duty of the public official with whom such transaction or business is made or done, to require such corporation to exhibit the Community Tax Certificate.

(c) The Community Tax Certificate required in the two preceding paragraphs shall be the one issued for the current year, except for the period from January until the fifteenth (15) of April each year, in which case, the Certificate issued for the preceding year shall suffice.

Section 6.09. Collection and Allocation of Proceeds of the Community Tax.

(a) The Municipal Treasurer may deputize the Barangay Treasurers, subject to existing laws and regulations, to collect the Community Tax payable by individual taxpayers in their respective jurisdictions; provided, however, that said Barangay Treasurer shall be bonded in accordance with existing laws.

(b) One Hundred Percent (100%) of the proceeds of the Community Tax actually and directly collected by the Municipal Treasurer shall accrue entirely to the general fund of this Municipality.

(c) The proceeds of the Community Tax collected through the Barangay Treasurers shall be apportioned as follows:

Fifty (50%) percent shall accrue to the general fund of the Municipality; and

Fifty (50%) percent shall accrue to the Barangay where the tax is collected.

CHAPTER VII GENERAL ADMINISTRATIVE PROVISIONS

ARTICLE A Collection and Accounting of Municipal Taxes and Other Impositions

Section 7A.01. Tax Period. Unless otherwise provided in this Ordinance, the tax period for all local taxes, fees, and charges imposed under this ordinance shall be the calendar year.

Section 7A.02. Accrual of Tax. Unless otherwise provided in this Ordinance, all taxes and charges imposed herein shall accrue on the first (1st) day of January of each year. However, new taxes, fees or charges, or change in the rate of existing taxes, fees, or charges, shall accrue on the first (1st) day of the quarter next following the effectivity of the Ordinance imposing such new levies or taxes.

Section 7A.03. Time of Payment. Unless specifically provided herein, all taxes, fees, and charges imposed in this Ordinance shall be paid within the first twenty (20) days of January or each subsequent quarter as the case may be on or before April 20; July 20; and October 20 of every year.

Section 7A.04. Surcharge for Late Payment. Failure to pay the tax described in this Article within the time required shall subject the taxpayer to a surcharge of twenty-five percent (25%) of the original amount of tax due, such surcharge to be paid at the same time and in the same manner as the tax due.

Section 7A.05. Interest on Unpaid Tax. In addition to the surcharge imposed herein, where the amount of any other revenue due to the municipality except voluntary contributions or donation, is not paid on the date fixed in the ordinance, or in the contract, expressed or implied, or upon the occurrence of the event which has given rise to its collection, there shall be collected as part of that amount an interest at the rate not to exceed two percent (2%) per month from the date it is due until it is paid, but in no case shall the total interest on the unpaid amount or a portion thereof exceed thirty-six (36) months.

Where an extension of time for the payment of the tax has been granted and the amount is not paid in full prior to the expiration of the extension, the interest above-mentioned shall be collected on the unpaid amount from the date it becomes originally due until fully paid.

Section 7A.06. Collection of Revenues by the Municipal Treasurer. Unless otherwise specified, all taxes, fees and charges due to this municipality shall be collected by the Municipal Treasurer or his duly authorized representatives.

Unless otherwise specifically provided in this Ordinance or under existing laws and ordinances, the Municipal Treasurer is hereby authorized, subject to the approval of the Municipal Mayor, to promulgate rules and regulations for the proper and efficient administration and collection of taxes, fees and charges herein levied and imposed.

Section 7A.07. Issuance of Receipts. It shall be the duty of the Municipal Treasurer or his authorized representative to issue the required official receipt to the person paying the tax, fee or charge wherein the date, amount, name of the person paying and the account for which it is paid, are shown.

Section 7A.08. Record of Persons Paying Revenue. It shall be the duty of the Municipal Treasurer to keep a record, alphabetically arranged and open to public inspection during

office hours, of the names of all persons paying municipal taxes, fees and charges. He shall, as far as practicable, establish and keep current the appropriate tax roll for each kind of tax, fee or charge provided in this Ordinance.

Section 7A.08. Accounting of Collections. Unless otherwise provided in this Ordinance and other existing laws and ordinances, all monies collected by virtue of this Ordinance shall be accounted for in accordance with the provisions of existing laws, rules and regulations and credited to the General Fund of the Municipality.

Section 7A.09. Examination of Books of Accounts. The Municipal Treasurer shall, by himself or through any of his deputies duly authorized in writing, examine the books of accounts and other pertinent records of the business establishments doing business within the municipality, and subject to municipal taxes, to ascertain, assess and collect the true and correct amount of the tax due the taxpayer concerned. Such examination shall be made during regular business hours once every year for every tax period, which shall be the year immediately preceding the examination. Any examination conducted pursuant to the provisions of this Section shall be certified to by the examining official and such certificate shall be made of record in the books of accounts of the taxpayer concerned.

In case the examination herein authorized is to be made by a duly authorized deputy of the Municipal Treasurer, there shall be written authority issued to the former which shall specifically state the name, address and business of the taxpayer whose books of accounts and pertinent records are to be examined, the date and place of such examination, and the procedure to be followed in conducting the same.

The forms and the guidelines to be observed for the proper and effective implementation of this Section shall be those prescribed by the Department of Finance.

The books of accounts kept by the business establishment pursuant to the provisions of the National Internal Revenue Code shall be sufficient for determining the correct amount of taxes, fees, charges & other imposition & the establishment shall no longer be required to keep another or separate books of accounts for the purpose.

For this purpose the records of the Revenue District Office of the Bureau of Internal Revenue shall be made available to the Municipal Treasurer, his deputy or duly authorized representative, all the data needed on the course of examination of books of account of business establishment especially the reproduction of the audited financial statement attached in the income Tax Return upon official request.

If after the examination or verification of the book of accounts or records of any business establishment, as mentioned in this section, a discrepancy is found resulting in and underpayment or overpayment, as the case maybe the corresponding adjustment shall be made.

All business establishments doing business in the municipality of Ipil shall be required to submit a monthly report on the gross receipt or sales derived from the business during the month, under oath in a form prescribed for the purpose by the Municipal Treasurer within (20) days after the end of each calendar month.

Section 7A.10. Keeping of cash register books & registration of Books of Accounts. All books of accounts of business establishment to be registered with the Office of the Municipal Treasurer. All books of account of business establishment must be first registered with the office of the Municipal Treasurer before they are used by the said business establishment.

All corporation, companies partnership or persons using cash register machines shall keep a cash register book to record all transactions of the cash register slip or sheet for the day and shall preserve said records as prescribed by Section 203 of the

National Internal Revenue Code. The said book and records shall be subject to examination and verification of the Local Treasury Officers.

All books being used by corporations, companies, partnership or persons including subsidiary books shall be registered in the Office of the Municipal Treasurer upon the start of business operations and every first working day or the first month of calendar or fiscal years as the case may be. Likewise, all official receipts cash sales, cash invoices, delivery receipts and other receipts used in the collection shall be registered in the Office of the Municipal Treasurer before using the same. Failure on the part of corporations, companies, partnership or persons to register their books of records and official receipts, cash sales, cash invoices, charge invoices, delivery receipts and other receipts used in the collection shall be punished pursuant to the penal provision of this Code.

The books of accounts and other pertinent records of tax exempt organizations of grantees of tax incentives shall be subject to examination by the Municipal Treasurer and/or his duly authorized representative for purposes of ascertaining compliance with the conditions under which they have been granted tax exemption on the tax incentives, and their tax liability, if any.

In case of government-owned and controlled corporations which are involved in the utilization and development of the national wealth within the jurisdiction of the Municipality of Ipil as well as on line National Government Agencies collecting mining taxes, royalties, forestry and fishery charges, and such other taxes, fees including related surcharges, interest or fines, and from its share in any co-production, joint venture on production sharing agreement in the utilization and development of the national wealth within the territorial jurisdiction of the Municipality of Ipil shall be subject to examination of books of accounts and other pertinent records to determine the share of the municipal government and barangay concerned as provided for under Section 289, 290, 291, 292 and 293 of the Local Government Code of 1991, otherwise known as Republic Act of 7160.

Any person who refuses to cooperate or fails to submit any document requested by the Municipal Treasurer or his duly authorized representative in connection with the examination of Books of Accounts within the period stated in the Letter of Authority, which shall not be less than (15) calendar days from receipt thereof, shall be punished in accordance with the penal provisions of this Code. In case or corporation, partnership or association, the President, Vice President, Directors, Treasurer or any officer or employee responsible for the violation shall be liable for such offense.

Failure on the part of any person (natural or juridical) to register in the Municipal Treasurer their books of accounts, books of records and official receipts, cash sales, cash invoices, delivery receipts and other receipts used in the collection within fifteen (15) working days from time of filing the application for new or renewal of business permits shall be administratively fined Five Thousand Pesos (5,000.00).

Invoice Requirements. It shall be unlawful for any person, firm, company or corporation engaged in the business mentioned under the provisions of this code and other other businesses, traders or occupation operated within the territorial jurisdiction of Municipality of Ipil, not to issue a duly registered and serially numbered commercial invoices showing among other things the name or style of the business, if any, and business address, for every sale or service rendered worth Five Pesos (5.00) or more, and it will be unlawful for anyone of them to misdeclare their invoices or sales books or other books of accounts of their true and correct sales.

Section 7A.11. Authority of the Municipal Treasurer. The Municipal Treasurer shall have the authority to enter into a compromise agreement on the mode/manner of payment of delinquent taxpayers, which shall not be more than one (1) year, in no case shall the Municipal

Treasurer enter into a compromise agreement without the taxpayer issuing a post-dated check corresponding to the agreed mode / manner of payment.

Provided, that if the delinquent taxpayer is an alien, in addition to the penalties prescribed hereof, the permit to engage in the business shall be recommended to the Municipal Mayor for revocation.

Provided further, that any person, other than the merchant himself, who is found helping or conniving with the merchant in the commission of the violation of the preceding provisions shall also suffer the corresponding penalties prescribed under the above preceding section.

Provided finally, that if a government employee in any instrumentality of the government is found abetting, helping or conniving with the merchant in the commission of the crime or violations, aside from the penalties, prescribed hereof, he shall also be administratively charged or recommended for dismissal from the government service.

Section 7A.12. Authority of the Municipal Treasurer to Compromise. Unless otherwise provided in this code, at any time after apprehension of a taxpayer for violation of any of the provisions of this article and before the corresponding complaint shall have been filed in the proper court, the Municipal Treasurer may impose a compromise penalty of not less than ONE THOUSAND PESOS (1,000.00) nor more than ONE THOUSAND FIVE HUNDRED PESOS (1,500.00).

Section 7A.13. Penal Provisions. Every violation of the provisions of this article shall be punishable by a fine of not less than FIVE HUNDRED PESOS (500.00) nor more than ONE THOUSAND PESOS (1,000.00), imprisonment of not more than than six (6) months, or both such fine and imprisonment at the discretion of the court.

Section 7A.14. Accrual to the General Fund of Fines, Costs, and Forfeitures. Unless otherwise provided by law or ordinance, fines, costs, forfeitures, and other pecuniary liabilities imposed by the court for violation of any municipal ordinance shall accrue to the General Fund of the municipality.

ARTICLE B

Civil Remedies for Collection of Revenues

Section 7B.01. Local Government's Lien. Local Taxes, fees, charges and other revenues herein provide constitute a lien, superior to all lines, charges or encumbrances in favor of any person, enforceable by appropriate administrative or judicial action, not only upon any property or rights therein which may be subject to lien but upon also property used in business, occupation, practice of profession or calling, or exercise of privilege with respect to which the lien is imposed. The lien may only be extinguished upon full payment of the delinquent local taxes, fees, and charges including related surcharges and interest.

Section 7B.02. Civil Remedies. The civil remedies for the collection of local taxes, fees, or charges, and related surcharges and interest resulting from delinquency delinquency shall be:

a. By administrative action through distraint of goods, chattels or effects, and other personal property of whatever character, including stocks and other securities, debts, credits, bank accounts, and interest in and rights to personal property, and to levy upon real property and interest in or rights to real property; and

b. By judicial action. Either of these remedies or all may be pursued concurrently or simultaneously at the discretion of the Municipal Government.

Section 7B.03. Distraint of Personal Property. The remedy by distraint shall proceed as follows:

a. **Seizure.** Upon failure of the person owing any local tax, fee or charge to pay the same at the time required, the Municipal Treasurer or his deputy may, upon written

notice, seize or confiscate any personal property belonging to the person or any personal property subject to the lien, in sufficient quantity to satisfy the tax, fee or charge in question, together with any increment thereto incident to delinquency and the expenses of seizure. In such case, the Municipal Treasurer or his deputy shall issue a duly authenticated certificate based upon the records of this office showing the fact of delinquency and the amount of the tax, fee or charge and penalty due. Such certificate shall serve as sufficient warrant for the distraint of personal property aforementioned, subject to the taxpayer's right to claim exemption under the provisions of existing laws. Distraint personal property shall be sold at public auction in the manner herein provided for.

b. Accounting of Distraint Goods. The Officer executing the distraint shall make or cause to be made an account of the goods, chattels or effects distraint, a copy of which signed by himself shall be left either with the owner or person from whose possession the goods, chattels, or effects are taken, or at the dwelling or place of business of that person and with someone of suitable age and discretion, to which list shall be added a statement of the sum demanded and a note of the time and place sale.

c. Publication. The Officer shall forthwith cause a notification to be exhibited in not less than three (3) conspicuous places in the territory of the local government units where the distraint is made; specifying the time and place of sale, and the articles distraint. The time of sale shall not be less than One Hundred twenty (120) days after notice to the owner or possessor of the property as above specified and the publication or posting of the notice. One place for the posting of the notice shall be at the Office of the Municipal Mayor.

d. Release of Distraint Property Upon Payment Prior to Sale. If not any time prior to the consummation of the sale, all proper charges are paid to the officer conducting the same, the goods or effects distraint shall be restored to the owner.

e. Procedure of Sale. At the time and place fixed in the notice, the officer conducting the sale shall sell the goods or effects so distraint at public auction to the highest bidder for cash. Within five (5) days after **the same, the Municipal Treasurer, shall make a report of the proceedings** in writing to the Municipal Mayor. Should the property distraint be not disposed of within one hundred and twenty (20) days from the date of distraint, the same shall be considered as sold to the local government unit concerned for the amount of the assessment made thereon by the Committee on Appraisal and to the extent of the same amount, the tax delinquencies shall be canceled. Said Committee on Appraisal shall be composed of the Municipal Treasurer as Chairman, with a representative of the Commission on Audit and the Municipal Assessor as Members.

f. Disposition of Proceeds. The proceeds of the sale shall be applied to satisfy the tax including the surcharges, interest, and other penalties incident to delinquency, and the expenses of the distraint and sale. The balance over and above that is required to pay the entire claim shall be returned to the owner of the property sold. The expenses chargeable upon the seizure and sale shall embrace only the actual expenses of seizure and preservation of the property pending the sale, and no charge shall be imposed for the services of the local officer or his representative. Where the proceeds of the sale are insufficient to satisfy the claim, other property may, in like manner, be distraint until the full amount, including all expenses, is collected.

ARTICLE C

Taxpayer's Remedies

Section 7C.01. Claim for Refund of Tax Credit. No case or proceeding shall be maintained in any court for the recovery of any tax, fee, or charge or erroneously or illegally collected until a written claim for refund or credit has been filed with the Municipal Treasurer. No case or proceeding shall be entertained in any court after the expiration of (2) years from the date of

payment of such tax, fee or charge, or from the date the taxpayer is entitled to a refund or credit.

Section 7C.02. Legality of this Code. Any question on the constitutionality or legality of this Ordinance may be raised on appeal within thirty (30) days from the effectivity thereof to the Secretary of Justice who shall render a decision within sixty (60) days from the date of receipt of the appeal: Provided, however, that such appeal shall not have the effect of suspending effectivity of this Ordinance and the accrual and payment of the tax, fee or charge levied herein: Provided finally, that within thirty (30) days after the receipt of the decision or the lapse of the sixty-day period without the Secretary of Justice acting upon the appeal, the aggrieved party may file the appropriate proceedings with a court of competent jurisdiction.

ARTICLE D

Miscellaneous Provisions

Section 7D.01. Power to Levy Other taxes, Fees or Charges. The municipality may exercise the power to levy taxes, fees or charges on any base or subject not otherwise specifically enumerated herein or taxed under the provisions of the National Internal Revenue Code, as amended, or other applicable laws: Provided, that the taxes, fees or charges shall not be unjust, excessive, oppressive, confiscatory or contradictory to declared national policy. Provided, further, that the ordinance levying such taxes, fees or charges shall not be enacted without any prior public hearing conducted for the purpose.

Section 7D.02. Publication of the Revenue Code. Within ten (10) days after its approval, a certified copy of this Ordinance shall be published in full for three (3) consecutive days in a newspaper of local circulation. Provided however that in cases where there are no newspapers of local circulation, the same may be posted in at least two (2) conspicuous and publicly accessible places.

Section 7D.03. Public Dissemination of this Code. Copies of this Revenue Code shall be furnished to the Municipal Treasurer for public dissemination.

Section 7D.04. Authority to Adjust Rates. The Sangguniang Bayan shall have the sole authority to adjust tax rates as prescribed herein not oftener than once every five (5) years, but in no case shall such adjustment exceed ten percent (10%) of the rates fixed under this Code.

Section 7D.05. Withdrawal of Tax Exemption Privileges. Unless otherwise provided in this Revenue Code, tax exemptions or incentives granted to, or presently enjoyed by all persons, whether natural or juridical, including government-owned or controlled corporations, except local water districts, cooperatives duly registered under RA 9520, non-stock and non-profit hospitals and educational institutions, business enterprises certified by the Board of Investment (BOI) as pioneer or non-pioneer for a period of six (6) and four (4) years, respectively, from the date of registration, business entity, association, or cooperatives registered under RA 6810, and printer and/ or publisher of books or other reading materials prescribed by DECS as school texts or references, insofar as receipts from the printing and/or publishing thereof are concerned, are hereby withdrawn.

CHAPTER VIII

GENERAL PENAL PROVISIONS

Section 8.01. Penalties for Violation of Tax Ordinance. Any person or persons who violates any of the provisions of this Ordinance or the rules or regulations promulgated by authority of this Ordinance shall, upon conviction, be punished by a fine of not less than One Thousand Pesos (1,000.00) nor more than Two Thousand Five Hundred Pesos

(2,500.00), or imprisonment of not less than one (1) month nor more than six (6) months, or both, at the discretion of the court.

If the violation is committed by any juridical entity, the President, General Manager, or the individual entrusted with the administration thereof at the time of the commission of the violation shall be held responsible or liable thereof.

Punishment by a fine or imprisonment as herein provided for, shall not relieve the offender from the payment of the tax, fee or charge imposed under this Ordinance.

CHAPTER IX FINAL PROVISIONS

Section 9.01. Separability Clause. If for any reason, any section or provision of this Ordinance shall be held to be unconstitutional or invalid by competent authority, such judgment or action shall not affect or impair the other sections or provisions thereof.

Section 9.02. Applicability Clause. All other matters relating to the impositions in this Ordinance shall be governed by pertinent provisions of existing laws and other ordinances.

Section 9.03. Repealing Clause. All ordinances, rules and regulations, or part thereof, in conflict with, or inconsistent with any provisions of this ordinance are hereby repealed or modified accordingly.

Section 9.04. Special Transitory Provisions. Pending enactment of a separate Cemetery Code, Solid Waste Management Code, existing provisions on Solid and Cemetery Fees of this Code are retained and deemed to be in full force and effect.

Section 9.05. Effectivity. That this Ordinance shall take effect after its approval, 15 days posting in a conspicuous places and three (3) consecutive weeks of general publication in a local newspaper within the province of Zamboanga Sibugay and the amount of One Hundred Fifty Thousand (P150,000.00) shall be appropriated for the purpose.

That this Ordinance was moved by Hon. Serafin L. Ramos, and unanimously seconded.

CERTIFIED CORRECT:

ESTELITA S. EGUIA, BSC, LLB
Sanggunian Secretary

ATTESTATION/CERTIFICATION

I HEREBY ATTEST and CERTIFY that I presided over the 58th Regular Session of the 12th Sangguniang Bayan of the Municipality of Ipil, Zamboanga Sibugay and that the foregoing legislative measure has been approved and adopted during the aforesaid session.

GLENN IAN Y. SABIJON
SB Member/Presiding Officer

APPROVED by Her Honor, the Municipal Mayor, on _____ in the Municipality of Ipil, Zamboanga Sibugay, Philippines.

ANAMEL C. OLEGARIO
Municipal Mayor